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TAB 25



Board of Education Report

File #: Rep-161-24/25, **Version:** 1

**Approval of the Proposed Material Revision for Alliance Gertz-Ressler Richard Merkin 6-12 Complex
January 14, 2025
Charter Schools Division**

Action Proposed:

Approve the material revision of the charter for Alliance Gertz-Ressler Richard Merkin 6-12 Complex ("Charter School"), to add an additional site within the community, as defined in the LAUSD Policy and Procedures for Charter Schools. The proposed additional site is located at 2211 S. Union Street, Los Angeles, CA 90007 in Board District 5 and Region South. The recommendation for approval is based on the information set forth in the attached Staff Assessment and Recommendation Report.

Background:

Alliance Gertz-Ressler Richard Merkin 6-12 Complex is a 6-12 span school currently serving 1,035 students on a private facility at 2023 S. Union Street, Los Angeles, CA, 90007 in Board District 5 and Region South. Alliance Gertz-Ressler Richard Merkin 6-12 Complex was approved by the LAUSD Board of Education on April 27, 2004. On September 25, 2018, the charter school was renewed for another five-year term to serve up to 1,010 students in grades 6-12.

On September 17, 2024, the Charter Schools Division commenced processing of Alliance Gertz-Merkin's complete material revision. Alliance Gertz-Ressler Richard Merkin 6-12 Complex seeks to revise its current charter, which expires June 30, 2027.

Based on a comprehensive review of the material revision application and supporting documentation, staff has determined that the charter school has met the standards and criteria set forth in Education Code section 47605 (see Ed. Code, §47607(b)) and therefore recommends approval of the material revision of the charter.

Expected Outcomes:

Charter School is expected to operate its school in a manner consistent with Board action, policies and requirements, and local, state, and federal law including ordinances, statutes, and regulations as well as with the terms and conditions set forth in Charter School's petition. The measurable pupil outcomes and method by which pupil progress toward outcomes will be measured are set forth in the charter petition.

Board Options and Consequences:

"Yes" - If the Board adopts the recommendation of approval of the material revision of the charter, Charter School would continue to operate as a charter school, as amended, for the remainder of the charter term.

"No" - If the Board does not adopt the recommendation of approval of the material revision of the charter, and instead takes specific action to deny the proposed material revision of the charter, Charter School would continue to operate under the terms of its current charter consistently with the Board's action and direction.

Policy Implications:

All provisions in the FSDRL shall be consistent with and be governed by all applicable legal and District policy requirements. To the extent any inconsistency may exist between any provision contained in the FSDRL and any applicable legal and District policy requirement, those applicable legal and District policy requirements shall control and the FSDRL shall be updated accordingly.

Budget Impact:

State income and various other income sources to the District are reduced when current District students enroll at a charter school, and comparable or offsetting expenditure reduction may not occur in such cases. Under Education Code section 47604(d), a chartering authority that grants a charter to a charter school to be operated as or by a nonprofit public benefit corporation is not liable for the debts or obligations of the charter school or for claims arising from the performance of acts, errors, or omissions by the charter school, if the chartering authority has complied with all oversight responsibilities required by law including, but not limited to, those required by Education Code section 47604.32 and Education Code section 47605(m). As the chartering authority, the District will continue to monitor and evaluate the charter school's fiscal condition and operations, and management of public funds, including review of all legally required fiscal reports, and the annual update of the charter school's LCAP. (Ed. Code, §§ 47604.32, 47604.33, 47606.5). Any significant modifications to the charter school's charter or operations that raise financial implications would require a material revision prior to implementation. Charter schools are expected to secure and maintain all insurance coverage consistent with applicable legal, District and charter requirements.

Charter School has selected to join the LAUSD Special Education Local Planning Area (SELPA) Option 3. Charter School's fair share contribution to special education will be 10% of the charter school's AB 602 (rate includes Base, Cost-of-Living Adjustment (COLA), and Growth/Decline reduced by the amount withheld for Program Specialist/Regionalized Services) and Federal IDEA revenues. This amount will be paid from Charter School's Local Control Funding Formula ("LCFF") funds or other unrestricted revenue sources and will be allocated to support the existing District-wide administration of special education supports and services. The amount withheld by the District from the Program Specialist/Regionalized Services in fiscal year will continue to be withheld and adjusted annually for COLA. An additional 10% of special education revenues will be retained by the District and allocated as directed by the Advisory Board and members of the LAUSD SELPA Option 3, with the leadership of the Director, Charter Operated Programs. These funds will be used to support the personnel for the members of the LAUSD SELPA Option 3; build management and operating procedures to create an infrastructure to support schools in meeting the needs of students with mild to severe disabilities; and, to create and implement new programs that serve students in charter schools. If Charter School does not spend their allocation of special education funds during a fiscal year of the charter petition period, the allocation of special education funds to Charter School for the next fiscal year will be reduced in an amount equal to the unspent special education funds of the previous fiscal year.

In addition to the payments required under this option, Charter School may request specific special education related services from the District through fee-for-service arrangements that will reflect the calculated cost of the requested services and will be contingent on the District's available resources.

Any change in the Option election that occurs during Charter School's charter term shall be mutually agreed upon and addressed in a Memorandum of Understanding (MOU) between the charter school and the District. The new Option election shall be effective on July 1 of the next school year with the corresponding fair share contribution.

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Student Impact:

As stated in the LAUSD Policy and Procedures for Charter Schools, “[W]hen the LAUSD Board authorizes and oversees a charter school, it establishes a relationship to advance its vision and mission and to accelerate gains in academic achievement and accountability for all of its students and public schools,” (Policy, p.3). Based on a comprehensive review and assessment of Charter School’s request for material revision of the charter and its record of performance, staff has determined that Charter School has met the requirements for approval of the material revision.

Equity Impact:

Not applicable

Issues and Analysis:

If all applicable pending issues, including but not limited to special education requirements, special education local planning area (SELPA) requirements, governance, fiscal and facilities matters, are not resolved at the time of the Board meeting, the item may be pulled from the agenda as consistent with the Charter Schools Act and the LAUSD Policy and Procedures for Charter Schools.

Attachments:

Attachment A - Staff Assessment and Recommendation Report

Attachment B - Alliance Gertz-Ressler Richard Merkin 6-12 Complex Data Set

Attachment C - Material Revision

Budget will be available prior to the board meeting at the following link:

[<https://drive.google.com/drive/folders/1ScvJRsEORSfGb7Qugwpu6QnvNV5PBNOI?usp=drive_link>](https://drive.google.com/drive/folders/1ScvJRsEORSfGb7Qugwpu6QnvNV5PBNOI?usp=drive_link)

Informatives:

Not applicable

Submitted:

12/10/24

File #: Rep-161-24/25, Version: 1

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



VERONICA ARREGUIN
Chief Strategy Officer
Office of the Chief Strategy Officer

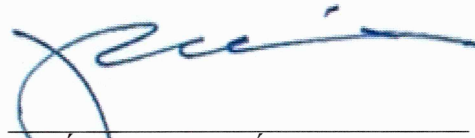
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

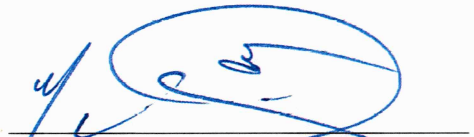
☒ Approved as to form.

APPROVED & PRESENTED BY:



JOSÉ COLE-GUTIÉRREZ
Director
Charter Schools Division

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

ATTACHMENT A

STAFF ASSESSMENT AND RECOMMENDATION REPORT

REQUEST FOR MATERIAL REVISION OF CHARTER

Board of Education Report 161-24/25

January 14, 2025

School Name:	Alliance Gertz-Ressler Richard Merkin 6-12 Complex		
Type of Charter School:	Start-Up Independent Charter School		
Charter Operator	Alliance College-Ready Public Schools		
Location Code:	8626		
Type of Site(s):	Private		
Site Address(es):	2023 S. Union Avenue, Los Angeles, CA 90007		
Board District(s):	5	Region(s):	South
Grade Levels Served:	6-12	Current Enrollment:	1,035
Grade Levels Authorized in Current Charter:	6-12	Approved Enrollment in Current Charter:	1,010
CONSIDERATION:	Material Revision to add an additional site		
CDE PERFORMANCE LEVEL: (PER CDE'S 2024 CLASSIFICATION)	Middle Performing		
CURRENT CHARTER TERM	2019-2027		
STAFF RECOMMENDATION:	Approval		

STAFF ASSESSMENT

I. ACTION PROPOSED

Staff recommends approval of the proposed material revision of the charter for Alliance Gertz-Ressler Richard Merkin 6-12 Complex ("Alliance Gertz-Merkin" or "Charter School"), a 6-12 span school located in Board District 5 and Region South, to add an additional site within the community, as defined in the *LAUSD Policy and Procedures for Charter Schools*. The proposed additional site is located at 2211 S. Union Avenue, Los Angeles, CA 90007, in Board District 5 and Region South.

Alliance College-Ready Public Schools, the California nonprofit public benefit corporation that holds the charter under the ultimate direction of the board of directors, seeks to utilize the proposed additional site for classroom instruction and as a parent center.

II. STANDARDS AND CRITERIA FOR MATERIAL REVISIONS

Material revisions are governed by the same standards and criteria that apply to new petitions (See Ed. Code, §§47605 and 47607). If the material revision contains a request to expand to one or more additional sites, or to add grade levels, staff must also determine whether the charter school is demonstrably unlikely to serve the interests of the entire community in which the school is proposing to locate. (See Ed. Code, § 47605(c)(7); Ed. Code, § 47607(a)(3) and (4)), and whether LAUSD is positioned to absorb the fiscal impact of the charter school expansion. (See Ed. Code, § 47605(c)(8); Ed. Code § 47607(a)(3) and (4).) Based on a comprehensive review of the material revision application, staff has determined that the charter school has met the standards

and criteria for approval [described in Education Code section 47605] or were determined not to be a basis for denial of the material revision application. Staff analysis includes the following:

- Does the petition, as revised, include a sound educational program, a reasonably comprehensive description of the 15 elements required for petitions, an affirmation of each of the conditions described in Education Code section 47605(e), and are petitioners likely to successfully implement the program set forth in the petition?

These criteria have been determined not to be bases for denial.

- Does the petition contain a declaration of whether or not the charter school shall be deemed the exclusive public employer of the employees of the charter school?

This requirement has been determined not to be a basis for denial.

- Is the proposed charter school demonstrably likely to serve the interests of the entire community in which the school is proposing to locate? (Ed. Code, § 47605(c)(7).)

Not applicable

- Is the school district positioned to absorb the fiscal impact of the proposed charter school? (Ed. Code, § 47605(c)(8).)

Not applicable

III. GENERAL SCHOOL INFORMATION

A. Charter Details

	Alliance Gertz-Ressler Richard Merkin 6-12 Complex
Initial Authorization:	On April 27, 2004, Alliance Gertz-Ressler Richard Merkin 6-12 Complex (formerly named Alliance Gertz-Ressler High School; formerly named College-Ready Academy High School) was authorized by the LAUSD Board of Education to serve 500 students in grades 9-12.
Most Recent Renewal	The charter was renewed on September 25, 2018 for a five-year term (July 1, 2019- June 30, 2024) to serve up to 1,010 students in grades 6-12. Pursuant to Education Code section 47607.4, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for Alliance Gertz-Ressler Richard Merkin 6-12 Complex expires June 30, 2027.
Approved Material Revisions of Current Charter:	The Board of Education approved a request for material revision on December 12, 2019, to amend the corporate structure and governance model.
Board Benchmarks in Current Charter Term:	Not applicable

	Alliance Gertz-Ressler Richard Merkin 6-12 Complex
Material Revision Application:	The processing of Alliance Gertz-Merkin’s complete material revision application commenced on September 17, 2024. Pursuant to the <i>LAUSD Policy and Procedures for Charter Schools</i> , the 120-day timeline (for presenting the material revision once processing commences) runs through January 14, 2025.
Master Plan for English Learners and Standard English Learners:	Alliance Gertz-Merkin implements its own Master Plan for English Learners and Standard English Learners.
Special Education SELPA	Alliance Gertz-Merkin participates in LAUSD Special Education Local Plan Area (SELPA) Option 3.

B. Charter School Operator

Alliance Gertz-Ressler Richard Merkin 6-12 Complex is operated by Alliance College-Ready Public Schools, a California nonprofit public benefit corporation that also operates 22 other LAUSD-authorized charter schools.

IV. STUDENT ACHIEVEMENT AND EDUCATIONAL PERFORMANCE

a. Summary

Alliance Gertz-Ressler Richard Merkin 6-12 Complex has been identified by the state as a Middle performing charter school. Please see discussion of the charter school’s record of academic performance below.

Please see the attached *Alliance Gertz-Ressler Richard Merkin 6-12 Complex Data Set*.

b. Measurements of Academic Performance on the California School Dashboard

Due to the COVID-19 pandemic, the 2022 Dashboard only displayed one year of data (also known as Status). Status Levels are reported based on the 2021-2022 school year data using one of five Status Levels (ranging from Very High, High, Medium, Low, and Very Low) for state measures. Please note that the Status Levels associated with the Chronic Absenteeism and Suspension Rate Indicators are reversed (ranging from Very Low, Low, Medium, High, and Very High). Below, the 2023 and 2024 Dashboard Performance Levels (colors) based on two years’ data are provided.

Alliance Gertz-Ressler Richard Merkin 6-12 Complex Dashboard Indicators

School Year	ELA	Math	English Learner Progress	College/Career	Chronic Absenteeism	Graduation Rate	Suspension Rate
2021-2022	Medium	Low	Very High	Not available	Very High	Very High	Low
2022-2023	Orange	Yellow	Green	High	Yellow	Blue	Yellow
2023-2024	Yellow	Yellow	Blue	Green	Yellow	Blue	Blue

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>) and CA School Dashboard

c. English Language Arts Indicator

In 2022 in English Language Arts (ELA), the charter school’s Distance from Standard (DFS) was higher than the state for All Students, and higher than the state for all four numerically significant student groups. In 2023 in ELA, the charter school’s DFS was lower than the state for All Students, and higher than the state for three of four numerically significant student groups. In 2024 in ELA, the charter school’s DFS was higher than the state for All Students, higher than the state for three

of five numerically significant student groups, and the same as the state for one of five numerically significant student groups.

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - English Language Arts Indicator - 2021-2022

Student Group	Charter Participation Rate	Charter Level	Charter ELA (DFS)	State Level	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Medium	-4.5	Low	-12.2	Higher
Latino	Met	Low	-5.1	Low	-38.6	Higher
English Learner	Met	Low	-58.3	Low	-61.2	Higher
Socioeconomically Disadvantaged	Met	Low	-5.7	Low	-41.4	Higher
Students with Disabilities	Met	Very Low	-72.7	Very Low	-97.3	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - English Language Arts Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Orange	-15.1	-10.5	Orange	-13.6	Lower
Latino	Met	Orange	-15.6	-10.5	Orange	-40.2	Higher
English Learner	Met	Orange	-69.2	-11.0	Orange	-67.7	Lower
Socioeconomically Disadvantaged	Met	Orange	-17.0	-11.2	Orange	-42.6	Higher
Students with Disabilities	Met	Red	-79.9	-7.2	Red	-96.3	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - English Language Arts Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-5.2	9.8	Orange	-13.2	Higher
Latino	Met	Green	-4.7	10.8	Orange	-39.3	Higher
English Learner	Met	Yellow	-58.8	10.4	Orange	-67.6	Higher
Long-Term English Learner	Met	Red	-122.4	-24.9	Red	-109.6	Lower
Socioeconomically Disadvantaged	Met	Yellow	-8.4	8.6	Orange	-40.9	Higher
Students with Disabilities	Met	Red	-95.6	-15.8	Red	-95.6	Same

Data Source: CA School Dashboard

d. Math Indicator

In 2022 in Math, the charter school's DFS was lower than the state for All Students, and lower than the state for three of four numerically significant student groups. In 2023 in Math, the charter school's DFS was lower than the state for All Students, and higher than the state for two of four

student groups. In 2024 in Math, the charter school's DFS was lower than the state for All Students, and higher than the state for three of five student groups.

In order to improve outcomes in math for the English Learner and Students with Disabilities student groups, school leaders report taking actions including, but not limited to, holding bi-weekly data analysis meetings for teachers, implementing instructional strategies such as co-teaching, and providing tutoring opportunities.

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - Math Indicator - 2021-2022

Student Group	Charter Participation Rate	Charter Level	Charter Math (DFS)	State Level	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Low	-82.7	Low	-51.7	Lower
Latino	Met	Low	-83.3	Low	-83.4	Higher
English Learner	Met	Very Low	-116.1	Low	-92.0	Lower
Socioeconomically Disadvantaged	Met	Low	-84.1	Low	-84.0	Lower
Students with Disabilities	Met	Very Low	-146.8	Very Low	-130.8	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - Math Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-78.1	4.5	Orange	-49.1	Lower
Latino	Met	Yellow	-78.5	4.7	Orange	-80.8	Higher
English Learner	Met	Red	-129.8	-13.7	Orange	-93.4	Lower
Socioeconomically Disadvantaged	Met	Yellow	-79.8	4.3	Yellow	-80.8	Higher
Students with Disabilities	Met	Red	-155.0	-8.2	Orange	-127.3	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - Math Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-65.8	12.3	Orange	-47.6	Lower
Latino	Met	Yellow	-64.8	13.7	Orange	-79.2	Higher
English Learner	Met	Orange	-106.9	22.9	Orange	-93.4	Lower
Long-Term English Learner	Met	Orange	-154.9	5.6	Red	-163.5	Higher
Socioeconomically Disadvantaged	Met	Yellow	-68.1	11.7	Orange	-78.2	Higher
Students with Disabilities	Met	Orange	-146.5	8.5	Red	-124.3	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

e. English Learner Progress Indicator

In 2022 on the English Learner Progress Indicator (ELPI), the charter school's Status Level of Very High was higher than the state's Status Level of Medium. The charter school's English Learner Progress Rate was higher than the state's rate. In 2023 on the ELPI, the charter school's performance color of Green was higher than the state's color of Yellow. The charter school's English Learner Progress Rate was higher than the state's rate. In 2024 on the ELPI, the charter school's performance color of Blue was higher than the state's color of Orange. The charter school's English Learner Progress Rate was higher than the state's rate.

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - English Learner Progress Indicator - 2021-2022

Student Group	Charter ELPAC Participation Rate	Charter Level	Charter EL Progress Rate	State Level	State EL Progress Rate	Charter to State Comparison
English Learner	Met	Very High	74.4%	Medium	50.3%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - English Learner Progress Indicator - 2022-2023

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	Met	Green	68.0%	-6.4%	Yellow	48.7%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - English Learner Progress Indicator - 2023-2024

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	---	Blue	75.0%	7.0%	Orange	45.7%	Higher
Long-Term English Learners	---	Blue	71.8%	5.9%	Orange	45.8%	Higher

Data Source: CA School Dashboard

--- As of the writing of this report, the 2024 Dashboard Participation Rate has not been publicly released

f. College/Career Indicator

The College/Career Academic Indicator was not reported on the 2022 Dashboard. In 2023, the charter school's Status Level of High for All Students was higher than the state's Status Level of Medium. The charter school's percentage of students prepared was higher than the state for both numerically significant student groups. In 2024, the charter school's performance color of Green for All Students was higher than the state's color of Yellow. The charter school's percentage of students prepared was higher than the state for both numerically significant student groups.

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - College/Career Indicator - 2022-2023

Student Group	Charter Level	Charter Prepared	State Level	State Prepared	Charter to State Comparison
All Students	High	58.5%	Medium	43.9%	Higher
Latino	High	59.5%	Medium	35.5%	Higher
Socioeconomically Disadvantaged	High	58.5%	Medium	35.4%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin 6-12 Complex - College/Career Indicator - 2023-2024

Student Group	Charter Color	Charter Prepared	State Color	State Prepared	Charter to State Comparison
All Students	Green	63.8%	Yellow	45.3%	Higher
Latino	Green	64.2%	Yellow	37.4%	Higher
Socioeconomically Disadvantaged	Green	64.2%	Yellow	37.4%	Higher

Data Source: CA School Dashboard

g. Chronic Absenteeism Indicator

In 2022, 2023, and 2024 on the Chronic Absenteeism Indicator, the charter school's rate of chronic absenteeism was lower than the state for All Students, and for all numerically significant student groups.

h. Graduation Indicator [HS only]

In 2022, 2023, and 2024, the charter school's percentage of graduated students was higher than the state for All Students and for all numerically significant student groups. Alliance Gertz-Merkin students must meet A-G requirements with a grade of "C" or better to graduate.

i. Suspension Rate Indicator

In 2022, 2023, and 2024 the charter school's percentage of students suspended at least once was lower than the state for All Students, and for all numerically significant student groups.

j. Dashboard Local Indicators

Staff also considered the Local Indicators (e.g., Basic: Teachers, Instructional Materials, Facilities; Implementation of Academic Standards; Parent and Family Engagement; Local Climate Survey; Access to a Broad Course of Study) which have all been reported as "Met" in 2023 and 2024.

k. Reclassification Rates

As of the writing of this report, reclassification data for 2021-2022 and 2022-2023 have not been published by the state.

l. Internal Assessment Data

Charter School did not provide internal assessment data for consideration.

m. Additional Information

Alliance Gertz-Merkin teachers are represented by United Teachers Los Angeles.

V. ANNUAL PERFORMANCE-BASED OVERSIGHT VISIT RESULTS

In accordance with Education Code section 47604.32, the District's Charter Schools Division (CSD) conducts at least one school site visit each year where the CSD evaluates charter school performance in the following four categories: Governance; Student Achievement and Educational Performance; Organizational Management, Programs, and Operations; and Fiscal Operations. Charter schools are rated in each category based on information and evidence gathered at the time of the annual performance-based oversight visit following a four-point rubric: (4) *Accomplished*, (3) *Proficient*, (2) *Developing*, and (1) *Unsatisfactory*. Please see below for Alliance Gertz-Ressler Richard Merkin 6-12 Complex's outcomes on its annual oversight evaluation reports for the last two years.

a. Governance

Oversight Ratings/Concerns	
2022-2023	<i>Accomplished</i>
2023-2024	<i>Proficient</i>
Concerns	No unresolved issues pending

b. Student Achievement and Educational Performance

Oversight Ratings/Concerns	
2022-2023	<i>Proficient</i>
2023-2024	<i>Proficient</i>
Concerns	No unresolved issues pending

c. Organizational Management, Programs, and Operations

Oversight Ratings/Concerns	
2022-2023	<i>Developing</i>
2023-2024	<i>Proficient</i>
Concerns	The rating of <i>Developing</i> in 2022-2023 was a result of Alliance College-Ready Public Schools' failure to conduct child abuse-mandated reporter training for two non-school-based staff members within the requisite timelines pursuant to applicable law

d. Fiscal Operations

Oversight Ratings/Concerns	
2022-2023	<i>Proficient</i>
2023-2024	<i>Proficient</i>
Concerns	No unresolved issues pending

VI. **FISCAL MANAGEMENT AND PERFORMANCE**a. Fiscal Condition

Alliance Gertz-Ressler Richard Merkin 6-12 Complex's fiscal condition has been positive since the 2019-2020 fiscal year.

	2019-2020 (Audited Actuals)	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Unaudited Actuals)
Net Assets	\$8,626,364	\$10,684,183	\$12,005,649	\$13,947,053	\$13,882,091
Net Income/Loss	\$432,297	\$2,055,358	\$1,321,466	\$1,941,404	(64,962) ²
Transfers In/Out	\$0	\$2,461 ¹	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0
Norm ³ Enrollment	965	994	1,002	1,000	1,003

¹The inbound money transfer of \$2,461 during Fiscal Year 2020-2021 consisted of an adjustment for the remaining child nutrition fund balances held by the closed schools of Alliance Baxter College-Ready High and Alliance College-Ready Middle Academy 5 which were transferred to the remaining Alliance schools.

²According to Alliance College-Ready Public Schools (“ACRPS”), the projected net loss of (\$64,962) for FY 2023-2024, as reflected in the Unaudited Actuals, was primarily associated with utilizing reserves in support of a strategic transition from one-time COVID-related funding to sustainable operations. Additionally, based on the CSD’s review of ACRPS’ financial information, the school continues to operate with positive cash reserve and net asset position.

³ The Norm Enrollment reported by Alliance Gertz-Ressler Richard Merkin 6-12 Complex for Fiscal Year 2024-2025 is 1,035. CSD staff will continue to monitor Charter School’s enrollment in accordance with established procedures and will take appropriate actions to ensure Charter School’s alignment with the approved capacity.

b. 2022-2023 Independent Audit Report

Audit Opinion: Unmodified/Unqualified

Material Weaknesses: None Reported

Deficiencies/Findings: None Reported

Lack of a Going Concern: None Reported

c. Other Significant Fiscal Information

The 3-year budget and cash flow projections submitted with the material revision reflect positive net assets and a net income each year for the remaining charter term (i.e., Fiscal Years 2025-2026 and 2026-2027), with cash reserve levels at 31.83%, 35.60%, and 38.36% for Fiscal Years 2024-2025 through 2026-2027, respectively.

The financial condition of the charter operator is summarized in the table below.

Alliance for College-Ready Public Schools					
Source: Independent Audit Report for the Year Ending June 30, 2023					
# of Charter Schools		<u>Including</u> related parties and charter schools		<u>Excluding</u> related parties and charter schools	
Operated	Authorized by LAUSD	Net Assets	Net Income / (Loss)	Net Assets	Net Income / (Loss)
23	23	\$227,266,280	\$29,991,297	\$62,148,170	\$11,189,771

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Academic Performance - English Language Arts

This report shows the performance levels for a single state indicator, English Language Arts, for all student groups. It also shows how the current year (status, DFS) compares to prior years (change) for each state indicator. Status and change each have five possible levels, which are displayed with the data for each indicator. A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "---" means that data is not currently available. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless students, to receive a status level for each student group.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	2022 Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison	2023 Number of Students with Scores	School 2023 Performance Level (color)	School 2023 Average DFS	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	State 2023 Average DFS	State 2023 Change	State 2023 Change Level	School to State DFS Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	All Students	557	-4.5	Medium	-12.2	Low	Higher	576	Orange	-15.1	-10.5	Declined	Orange	-13.6	-1.4	Maintained	Lower
				American Indian or Alaska Native	0	--	--	-49.3	Low	--	0	--	--	--	--	Orange	-47.9	2	Maintained	--
				Asian	*	-	No Performance Level	63	Very High	--	0	--	--	--	--	Blue	61.8	-1.2	Maintained	--
				Black or African American	*	-	No Performance Level	-57.7	Low	--	*	No Color	--	--	No Change Level	Orange	-59.6	-2	Maintained	--
				English Learner	159	-58.3	Low	-61.2	Low	Higher	164	Orange	-69.2	-11	Declined	Orange	-67.7	-6.5	Declined	Lower
				Filipino	0	--	--	42.9	High	--	0	--	--	--	--	Green	44	1.1	Maintained	--
				Foster Youth	*	-	No Performance Level	-85.6	Very Low	--	*	No Color	--	--	No Change Level	Red	-89.2	-2.5	Maintained	--
				Homeless Youth	*	-	No Performance Level	-62.9	Low	--	*	No Color	--	--	No Change Level	Orange	-67.9	-5	Declined	--
				Latino	548	-5.1	Low	-38.6	Low	Higher	568	Orange	-15.6	-10.5	Declined	Orange	-40.2	-1.7	Maintained	Higher
				Native Hawaiian or Pacific Islander	0	--	--	-29.1	Low	--	0	--	--	--	--	Orange	-32.5	-3.4	Declined	--
				Socioeconomically Disadvantaged	544	-5.7	Low	-41.4	Low	Higher	546	Orange	-17.0	-11.2	Declined	Orange	-42.6	-1.2	Maintained	Higher
				Students with Disabilities	58	-72.7	Very Low	-97.3	Very Low	Higher	60	Red	-79.9	-7.2	Declined	Red	-96.3	1.8	Maintained	Higher
				Two or More Races	0	--	--	25.1	High	--	0	--	--	--	--	Green	24.3	-0.8	Maintained	--
				White	*	-	No Performance Level	21.9	High	--	0	--	--	--	--	Green	20.8	-1.2	Maintained	--

Participation Rate Report below displays the percent of students tested by content area. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

ELA Participation Rate By Student Group														
	ALL	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless Youth	Latino	Native Hawaiian or Pacific Islander	Socioeconomically Disadvantaged	Students with Disabilities	Two or More Races	White
Percent of students tested in 2022 **	100%	--	100%	100%	99%	--	100%	100%	100%	--	100%	100%	--	100%
Participation Rate Met 2022 *	Yes	--	Yes	Yes	Yes	--	Yes	Yes	Yes	--	Yes	Yes	--	Yes
Percent of students tested in 2023	100%	--	--	100%	99%	--	100%	100%	100%	--	100%	100%	--	--
Participation Rate Met 2023	Yes	--	--	Yes	Yes	--	Yes	Yes	Yes	--	Yes	Yes	--	--

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

** Whole number rounding is used for the participation rate.

Data Sources: California School Dashboard Research data files 2023

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Academic Performance - Math

This report shows the performance levels for a single state indicator, Mathematics, for all student groups. It also shows how the current year (status, DFS) compares to prior years (change) for each state indicator. Status and change each have five possible levels, which are displayed with the data for each indicator. A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless students, to receive a status level for each student group.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	School 2022 Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison	School 2023 Number of Students with Scores	School 2023 Performance Level (color)	School 2023 Average DFS	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	State 2023 Average DFS	State 2023 Change	State 2023 Change Level	School to State DFS Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	All Students	556	-82.7	Low	-51.7	Low	Lower	576	Yellow	-78.1	4.5	Increased	Orange	-49.1	2.6	Maintained	Lower
				American Indian or Alaska Native	0	--	--	-90.4	Low	--	0	--	--	--	Yellow	-87.3	4.6	Increased	--	
				Asian	*	-	No Performance Level	48.4	Very High	--	0	--	--	--	Blue	50.8	2.3	Maintained	--	
				Black or African American	*	-	No Performance Level	-106.9	Very Low	--	*	No Color	--	--	No Change Level	Red	-104.5	2.6	Maintained	--
				English Learner	160	-116.1	Very Low	-92.0	Low	Lower	164	Red	-129.8	-13.7	Declined	Orange	-93.4	-1.4	Maintained	Lower
				Filipino	0	--	--	2.7	High	--	0	--	--	--	Green	7.4	4.8	Increased	--	
				Foster Youth	*	-	No Performance Level	-126.3	Very Low	--	*	No Color	--	--	No Change Level	Red	-127.4	1.4	Maintained	--
				Homeless Youth	*	-	No Performance Level	-101.8	Very Low	--	*	No Color	--	--	No Change Level	Red	-101.3	0.5	Maintained	--
				Latino	547	-83.3	Low	-83.4	Low	Higher	568	Yellow	-78.5	4.7	Increased	Orange	-80.8	2.6	Maintained	Higher
				Native Hawaiian or Pacific Islander	0	--	--	-71.3	Low	--	0	--	--	--	Orange	-71.3	0.0	Maintained	--	
				Socioeconomically Disadvantaged	543	-84.1	Low	-84.0	Low	Lower	546	Yellow	-79.8	4.3	Increased	Yellow	-80.8	3.2	Increased	Higher
				Students with Disabilities	58	-146.8	Very Low	-130.8	Very Low	Lower	60	Red	-155.0	-8.2	Declined	Orange	-127.3	5.5	Increased	Lower
				Two or More Races	0	--	--	-9.9	Medium	--	0	--	--	--	Yellow	-7.4	2.5	Maintained	--	
				White	*	-	No Performance Level	-13.4	Medium	--	0	--	--	--	Yellow	-11.1	2.3	Maintained	--	

Participation Rate Report below displays the percent of students tested by content area. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

Math Participation Rate By Student Group														
	ALL	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless Youth	Latino	Native Hawaiian or Pacific Islander	Socioeconomically Disadvantaged	Students with Disabilities	Two or More Races	White
Percent of students tested in 2022 **	99%	--	94%	100%	99%	--	100%	100%	99%	--	99%	100%	--	100%
Participation Rate Met 2022 *	Yes	--	No	Yes	Yes	--	Yes	Yes	Yes	--	Yes	Yes	--	Yes
Percent of students tested in 2023	100%	--	--	100%	99%	--	100%	100%	100%	--	100%	100%	--	--
Participation Rate Met 2023	Yes	--	--	Yes	Yes	--	Yes	Yes	Yes	--	Yes	Yes	--	--

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

** Whole number rounding is used for the participation rate.

Data Sources: California School Dashboard Research data files 2023

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

English Learner Progress Indicator (ELPI)

This report shows the percentage of current English learner (EL) students making progress towards English language proficiency at their school. The English Learner Progress Indicator (ELPI) relies on the results of the Summative English Language Proficiency Assessment (ELPAC), including Summative Alternate ELPAC results, to determine EL student progress. For the EL students taking the Summative ELPAC, those who increase an ELPI level or maintain ELPAC Level 4 are counted as making progress towards English language proficiency. ELPI Change measures the rate at which schools are improving their ability to move their EL students towards English language proficiency. It is the difference between the prior year Status and the current year Status. A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

English Learner Progress Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	2022 School			2022 State			2023 School				2023 State					
					Number of EL Students with a Performance Level in Both the Current and Prior Year	Percentage of English Learners making progress towards English proficiency	Status Level	Percentage of English Learners making progress towards English proficiency	Status Level	School to State ELPI Comparison	Number of EL Students with a Performance Level in Both the Current and Prior Year	School 2023 Performance Level (color)	Percentage of English Learners making progress towards English proficiency	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	Percentage of English Learners making progress towards English proficiency	State 2023 Change	State 2023 Change Level	School to State ELPI Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	English Learner	129	74.4%	Very High	50.3%	Medium	Higher	122	Green	68.0%	-6.4%	Declined	Yellow	48.7%	-1.6%	Maintained	Higher

Districts and schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window (February 1 to May 31) will receive a modified ELPI rate on the California School Dashboard (Dashboard). For each district and school that does not meet the 95 percent target, the minimum number of students needed to reach a participation rate of at least 95 percent is determined. The resulting number of students will be counted as not making progress in the current ELPI Status calculation.

ELPAC Participation				
Year	Number of EL Student Enrolled	Number of EL Students Tested	Percent of EL Students Tested	Participation Rate Met
2022	133	132	99.2%	Yes
2023	122	122	100.0%	Yes

Note: Schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window (February 1 to May 31) will receive a modified ELPI rate on the California School Dashboard (Dashboard).

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Data Sources: California School Dashboard Research data files 2023

2022 Student English Language Acquisition Results		
The percentage of current EL students who progressed at least one ELPI level, maintained ELPI level 4, maintained lower ELPI levels (i.e., levels 1, 2L, 2H, 3L, or 3H), or decreased at least one ELPI Level.		
School		
Alliance Gertz-Ressler Richard Merkin 6-12 Complex	State	
ELs Who Progressed at Least One ELPI Level	73.6%	47.5%
ELs Who Maintained ELPI Level 4	0.8%	2.8%
ELs Who Maintained ELPI Level 1, 2L, 2H, 3L, 3H	14.0%	31.4%
ELs Who Decreased at Least One ELPI Level	11.6%	18.3%

2023 Student English Language Acquisition Results		
The percentage of current EL students who progressed at least one ELPI level, maintained ELPI level 4, maintained lower ELPI levels (i.e., levels 1, 2L, 2H, 3L, or 3H), or decreased at least one ELPI Level.		
School		
Alliance Gertz-Ressler Richard Merkin 6-12 Complex	State	
ELs Who Progressed at Least One ELPI Level	63.1%	46.4%
ELs Who Maintained ELPI Level 4	4.9%	2.4%
ELs Who Maintained ELPI Level 1, 2L, 2H, 3L, 3H	21.3%	32.7%
ELs Who Decreased at Least One ELPI Level	10.7%	18.6%

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Academic Performance - College / Career

Graduates who meet specific College/Career Indicator (CCI) "prepared" criteria are include in the calculations of the CCI rate. For the 2023 Dashboard, the CCI will report the most current year data or "Status only". Therefore the CCI will have performance displayed using one of five Status levels that range between Very Low (lowest performance), Low, Medium, High, and Very High (highest performance). A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cml/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

College / Career Academic Indicator - CA School Dashboard Indicator										
RG	BD	Loc Code	School	Student Group	Number of Students with Scores	School 2023 percentage of prepared students	School 2023 Status Level	State 2023 percentage of prepared students	State 2023 Status Level	School to State CCI Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	All Students	123	58.5%	High	43.9%	Medium	Higher
				American Indian or Alaska Native	0	--	--	26.5%	Low	--
				Asian	0	--	--	75.8%	Very High	--
				Black or African American	*	--	No Status Level	25.1%	Low	--
				English Learner	13	7.7%	Very Low	15.3%	Low	--
				Filipino	0	--	--	65.2%	High	--
				Foster Youth	*	--	No Status Level	11.6%	Low	--
				Homeless Youth	*	--	No Status Level	20.4%	Low	--
				Latino	121	59.5%	High	35.5%	Medium	Higher
				Native Hawaiian or Pacific Islander	0	--	--	33.1%	Low	--
				Socioeconomically Disadvantaged	123	58.5%	High	35.4%	Medium	Higher
				Students with Disabilities	17	29.4%	Low	12.3%	Low	--
				Two or More Races	0	--	--	52.9%	Medium	--
				White	*	--	No Status Level	53.2%	Medium	--

Data Sources: California School Dashboard Research data files 2023.

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Chronic Absenteeism

This report shows the percentage of students in Kindergarten through grade eight who were absent 10 percent or more of the school year. For most state indicators, the desired outcome is to have a high percentage of performance in the current year. However, chronic absenteeism has a reverse goal of having the lowest percentage of students chronically absent in the current year. Current and prior year data is compared to see whether a school made improvement (i.e., had a lower rate of Chronic Absenteeism in 2023 than it did in 2022) or did worse (i.e., had a higher rate in 2023). Taken together, current year data and its comparison with prior year data will give a performance level (color). A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Chronic Absenteeism - CA School Dashboard Indicator																				
R G	B D	Locati on Code	School	Student Group	Number of students enrolled who meet criteria	School 2022 Chronic Absenteeism Percentage	School 2022 Status Level	State 2022 Chronic Absenteeism Percentage	State 2022 Status Level	School to State Chronic Absenteeism	Number of students enrolled who meet criteria	School 2023 Performanc e Level (color)	School 2023 Chronic Absenteeism	School 2023 Change	School 2023 Change Level	State 2023 Performanc e Level (color)	State 2023 Chronic Absenteeism Percentage	State 2023 Change	State 2023 Change Level	School to State Chronic Absenteeism
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	All Students	455	21.1%	Very High	30.0%	Very High	Lower	454	Yellow	17.2%	-3.9%	Declined Significantl y	Yellow	24.3%	-5.7	Declined Significantl y	Lower
				American Indian or Alaska Native	0	--	--	42.9%	Very High	--	0	--	--	--	--	Yellow	36.1%	-6.8	Declined Significantl y	--
				Asian	*	--	No Performanc e Level	11.5%	High	--	0	--	--	--	--	Yellow	10.1%	-1.4	Declined	--
				Black or African American	*	--	No Performanc e Level	42.9%	Very High	--	*	No Color	0.0%	0.0%	No Change Level	Yellow	36.4%	-6.5	Declined Significantl y	--
				English Learner	94	23.4%	Very High	33.6%	Very High	Lower	108	Orange	21.3%	-2.1%	Declined	Yellow	26.3%	-7.3	Declined Significantl y	Lower
				Filipino	0	--	--	16.2%	High	--	0	--	--	--	--	Yellow	13.8%	-2.4	Declined	--
				Foster Youth	*	--	No Performanc e Level	42.1%	Very High	--	*	No Color	0.0%	0.0%	No Change Level	Yellow	33.6%	-8.5	Declined Significantl y	--
				Homeless Youth	*	--	No Performanc e Level	45.1%	Very High	--	*	No Color	0.0%	0.0%	No Change Level	Yellow	38.7%	-6.4	Declined Significantl y	--
				Latino	447	21.0%	Very High	35.8%	Very High	Lower	445	Yellow	17.3%	-3.7%	Declined Significantl y	Yellow	28.4%	-7.4	Declined Significantl y	Lower
				Native Hawaiian or Pacific Islander	0	--	--	43.9%	Very High	--	0	--	--	--	--	Yellow	37.6%	-6.3	Declined Significantl y	--
				Socioeconomically Disadvantaged	441	20.9%	Very High	37.4%	Very High	Lower	427	Yellow	18.3%	-2.6%	Declined	Yellow	29.9%	-7.5	Declined Significantl y	Lower
				Students with Disabilities	45	24.4%	Very High	39.6%	Very High	Lower	47	Orange	23.4%	-1.0%	Declined	Yellow	33.1%	-6.5	Declined Significantl y	Lower
				Two or More Races	*	--	No Performanc e Level	25.1%	Very High	--	*	No Color	0.0%	0.0%	No Change Level	Yellow	21.6%	-3.5	Declined Significantl y	--
				White	*	--	No Performanc e Level	21.9%	Very High	--	0	--	--	--	--	Yellow	18.5%	-3.5	Declined Significantl y	--

Data Sources: California School Dashboard Research data files 2023

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Suspension Rate Indicator

This report shows the number of students who have an aggregate suspension of at least one full day. A student is counted as suspended in the suspension rate only once regardless of multiple suspensions or multiple days of suspension. For most state indicators, the desired outcome is a high percentage of performance in the current year and an increase from the prior year. However, for the Suspension Rate indicator, the desired outcome is a low rate in the current year and a decline from the prior year. Current and prior year data is compared to see whether a school made improvement (i.e., had a lower rate of suspension in 2022-23 than it did in 2021-22) or did worse (i.e., had a higher rate in 2022-23 than in 2021-22). Taken together, current year data and its comparison with prior year data will give a performance level (color). A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Suspension Rate Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	Number of Students	School 2022 Percentage of Students suspended at least once	School 2022 Status Level	State 2022 Percentage of Students suspended at least once	State 2022 Status Level	School to State Suspension Rate Percentage Comparison	Number of Students	School 2023 Performance level (color)	School 2023 Percentage of Students suspended at least once	School 2023 Change	School 2023 Change Level	State 2023 Performance level (color)	State 2023 Percentage of Students suspended at least once	State 2023 Change	State 2023 Change Level	School to State Suspension Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	All Students	1,017	1.4%	Low	3.1%	Medium	Lower	1,011	Yellow	2.1%	0.7%	Increased	Orange	3.5%	0.4%	Increased	Lower
				American Indian or Alaska Native	0	--	--	6.4%	High	--	0	--	--	--	Orange	7.4%	1.0%	Increased	--	
				Asian	*	--	No Performance Level	0.9%	Very Low	--	*	No Color	--	--	No Change Level	Green	1.1%	0.2%	Maintained	--
				Black or African American	*	--	No Performance Level	7.9%	High	--	*	No Color	--	--	No Change Level	Red	8.8%	0.9%	Increased	--
				English Learner	144	0.7%	Very Low	3.2%	Medium	Lower	161	Yellow	1.2%	0.5%	Increased	Orange	3.7%	0.5%	Increased	Lower
				Filipino	0	--	--	1.2%	Low	--	0	--	--	--	Green	1.3%	0.1%	Maintained	--	
				Foster Youth	*	--	No Performance Level	12.4%	Very High	--	*	No Color	--	--	No Change Level	Red	13.6%	1.2%	Increased	--
				Homeless Youth	*	--	No Performance Level	5.5%	High	--	*	No Color	--	--	No Change Level	Orange	6.5%	1.0%	Increased	--
				Latino	1,003	1.3%	Low	3.3%	Medium	Lower	997	Yellow	2.1%	0.8%	Increased	Orange	3.8%	0.5%	Increased	Lower
				Native Hawaiian or Pacific Islander	0	--	--	4.5%	Medium	--	0	--	--	--	Orange	4.9%	0.4%	Increased	--	
				Socioeconomically Disadvantaged	988	1.4%	Low	4.0%	Medium	Lower	969	Yellow	2.2%	0.8%	Increased	Orange	4.5%	0.5%	Increased	Lower
				Students with Disabilities	103	1.9%	Low	5.4%	High	Lower	113	Blue	0.0%	-1.9%	Declined	Orange	5.9%	0.5%	Increased	Lower
				Two or More Races	*	--	No Performance Level	2.9%	Medium	--	*	No Color	--	--	No Change Level	Orange	3.3%	0.4%	Increased	--
				White	*	--	No Performance Level	2.6%	Medium	--	*	No Color	--	--	No Change Level	Yellow	2.9%	0.2%	Maintained	--

Data Sources: California School Dashboard Research data files 2023

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Graduation Rate Indicator

This report shows the combined four- and five-year graduation rate for comprehensive (or traditional) high schools and Dashboard Alternative School Status (DASS) schools. This rate is based on the number of high school students who graduate with a regular high school diploma in either four or five years. The 2023 Graduation Rate Indicator includes students from the most recent graduation cohort (Class of 2023) as well as students from the prior cohort (Class of 2022) who graduated in their fifth year of high school in 2022-23. Current and prior year data is compared to see whether a school made improvement (i.e., had a higher rate of graduation in 2023 than it did in 2022) or experienced a decline. Results will fall into one of five levels, ranging from "Increased Significantly" to "Declined Significantly." Combining current year data and its comparison with prior year data, will give a performance level (color). A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Graduation Rate Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	Number of Students	School 2022 Percentage of graduated students	School 2022 Status Level	State 2022 Percentage of graduated students	State 2022 Status Level	School to State Graduated Students Comparison	Number of Students	School 2023 Performance Level (color)	School 2023 Percentage of graduated students	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	State 2023 Percentage of graduated students	State 2023 Change	State 2023 Change Level	School to State Graduated Students Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	All Students	137	99.3%	Very High	87.4%	Medium	Higher	123	Blue	99.2%	-0.1%	Maintained	Orange	86.4%	1.0%	Declined	Higher
				American Indian or Alaska Native	0	--	--	79.6%	Low	--	0	--	--	--	--	Orange	79.6%	-0.1%	Maintained	--
				Asian	0	--	--	95.2%	Very High	--	0	--	--	--	--	Green	94.5%	-0.7%	Maintained	--
				Black or African American	0	--	--	79.5%	Low	--	*	No Color	--	--	No Change Level	Orange	78.5%	1.0%	Declined	--
				English Learner	15	100.0%	No Performance Level	73.3%	Low	--	13	No Color	100.0%	0.0%	Maintained	Orange	73.5%	0.2%	Maintained	--
				Filipino	0	--	--	95.5%	Very High	--	0	--	--	--	--	Green	94.7%	-0.8%	Maintained	--
				Foster Youth	*	--	No Performance Level	64.1%	Very Low	--	*	No Color	--	--	No Change Level	Red	63.2%	-0.8%	Maintained	--
				Homeless Youth	*	--	No Performance Level	74.4%	Low	--	*	No Color	--	--	No Change Level	Orange	73.7%	-0.7%	Maintained	--
				Latino	137	99.3%	Very High	85.3%	Medium	Higher	121	Blue	99.2%	-0.1%	Maintained	Orange	84.2%	1.0%	Declined	Higher
				Native Hawaiian or Pacific Islander	0	--	--	85.2%	Medium	--	0	--	--	--	--	Yellow	84.6%	-0.7%	Maintained	--
				Socioeconomically Disadvantaged	137	99.3%	Very High	85.1%	Medium	Higher	123	Blue	99.2%	-0.1%	Maintained	Orange	83.7%	1.4%	Declined	Higher
				Students with Disabilities	*	--	No Performance Level	75.2%	Low	--	17	No Color	100.0%	--	No Change Level	Orange	72.7%	2.5%	Declined	--
				Two or More Races	0	--	--	89.6%	Medium	--	0	--	--	--	--	Orange	88.6%	1.0%	Declined	--
				White	0	--	--	90.8%	High	--	*	No Color	--	--	No Change Level	Orange	89.8%	1.0%	Declined	--

Data Sources: California School Dashboard Research data files 2023

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Enrollment Report

This report displays CALPADS K-12 enrollment number and percentages of select student groups. Annual enrollment consists of the number of students primarily enrolled on Census Day (the first Wednesday in October). This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS). These data were reviewed and certified in CALPADS as being accurate by authorized district or school personnel. In order to certify data in CALPADS, authorized district or charter school personnel are required to review the accuracy of all data associated with the applicable CALPADS submission. The California Department of Education collects some data on GATE programs through the California Longitudinal Pupil Achievement Data System (CALPADS); however, this information is submitted by LEAs on a voluntary basis and it wouldn't necessarily be accurate as per CDE. Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

2023-2024 Enrollment by Ethnicity and Student Group																					
RG	BD	Loc Code	School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	1,003	94.7%	13.1%	0.0%	0.1%	0.9%	10.9%	0.0%	0.2%	0.3%	98.5%	0.0%	0.0%	0.5%	95.2%	11.5%	0.0%	0.0%
Statewide				5,837,690	61.7%	N/A	0.4%	9.9%	4.9%	18.4%	2.2%	0.5%	3.6%	56.1%	0.8%	0.4%	1.1%	62.7%	13.7%	4.6%	20.3%
Los Angeles Unified				529,902	80.7%	11.0%	0.1%	3.4%	7.3%	20.1%	1.7%	0.6%	2.1%	73.8%	0.2%	0.1%	1.8%	81.3%	14.8%	2.0%	9.8%

2022-2023 Enrollment by Ethnicity and Student Group																					
RG	BD	Loc Code	School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	998	94.0%	14.7%	0.0%	0.1%	0.8%	13.2%	0.0%	0.2%	0.8%	98.7%	0.0%	0.0%	0.2%	95.0%	10.9%	0.1%	0.1%
Statewide				5,852,544	59.9%	N/A	0.4%	9.5%	4.7%	19.0%	2.2%	0.5%	3.2%	56.1%	0.7%	0.4%	2.2%	61.5%	13.1%	4.3%	20.1%
Los Angeles Unified				538,295	81.0%	11.1%	5.9%	3.4%	7.4%	21.3%	1.6%	0.7%	1.7%	74.2%	0.1%	0.2%	1.5%	82.0%	14.1%	2.0%	9.7%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

Alliance Gertz-Ressler Richard Merkin

6-12 Complex

RECLASSIFICATION RATES

This reports shows a two year comparison of the number of English Learners (ELs) on Census Day, the number of students reclassified since the prior Census Day, and the reclassification rate for each specified year. The reclassification rate, displayed in percentage, is calculated by dividing the number reclassified by the number of prior year ELs.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

RG	BD	Loc Code	School	Year	Students Redesignated FEP	School	State	School to State RFEP Comparison
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	2021-2022*	2020-2021 Number of English Language Learners	--	--	--
					2021-2022 Number of Students Reclassified	--	--	
					2021-2022 Reclassification Rate	--	--	
				2022-2023*	2021-2022 Number of English Language Learners	--	--	--
					2022-2023 Number of Students Reclassified	--	--	
					2022-2023 Reclassification Rate	--	--	

Note: *Reclassification data for 2021-2022 and 2022-2023 has not been published by the State as of the creation of this data set. After the California Department of Education releases the 2021-2022 and 2022-2023 Annual Reclassification (RFEP) Counts and Rates this tab will be updated accordingly.

A double dash "--" means that data is not currently available.

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesreclass.asp>

Alliance Gertz-Ressler Richard Merkin 6-12⁸⁷⁷ Complex

Long-Term English Learners (LTEL) and "At-Risk"

Note: The "EL Total" column in this report displays the summed total of the disaggregated English Learner (EL) data in the four columns under the "English Learners" heading. The "Total (Ever-EL)" column displays the summed total of the data in the "RFEP" column plus the data in the four columns under the "English Learners" heading OR the data in the "EL Total" column, but not both. The percent values displayed in this report are calculated as a percent of the "Total (Ever-EL)" which fully and more accurately considers what happens to all EL students over time, including those who are Reclassified Fluent English Proficient (RFEP). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

RG	BD	Loc Code	School	English Learners	2022-2023				2023-2024			
					School		State		School		State	
					Enrollment	Percent	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	LTEL 6+ Years	60	7.8%	226,535	11.1%	60	8.0%	211,218	18.1%
				At-Risk 4-5 Years	3	0.4%	144,190	7.1%	2	0.3%	136,190	9.6%
				EL 0-3 Years	2	0.3%	505,487	24.8%	4	0.5%	519,652	26.0%
				EL 4+ Years Not At-Risk or LTEL	67	8.7%	236,323	11.6%	43	5.7%	207,773	10.4%
				EL total	132	17.2%	1,112,535	54.5%	109	14.6%	1,074,833	53.8%
				RFEP	637	82.8%	927,723	45.5%	639	85.4%	924,460	46.2%
				Total (Ever)	769	100.0%	2,040,258	100.0%	748	100.0%	1,999,293	100.0%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesltel.asp>

Alliance Gertz-Ressler Richard Merkin 6-12 Complex

Students with Disabilities Report

This report displays the K-12 enrollment and the number of K-12 students with disabilities total, by incidence category, and by eligibility as reported on the Census Day (First Wednesday in October) CALPADS Fall 1 Certified Student Profile List Report (Report 8.1) submitted by LEAs (Local Education Agencies). LEAs are required to "certify" specified data during submission windows. The CDE uses certified data for state and federal reporting and to develop accountability metrics. Once data are certified by an LEA following the close of the Amendment Window, they are "frozen" and cannot be amended. Note: Students with disabilities counts and percentages in this report may be higher or lower for some schools when comparing this report counts with 2021-22 Enrollment by Student Group counts posted in DataQuest by the CDE due to the accuracy of all data associated with the applicable CALPADS submission. CALPADS certification is a two-step process with Level-2 certification reserved for the district superintendents, charter school administrators, or their designees. High incidence eligibilities are indicated by an asterisk (*). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

2023-2024 Special Education Enrollment

RG	BD	Location Code	School	OCT 2023 Enroll #	Sp Ed Enroll #	Sp Ed Enroll %
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	1,003	115	11.5%
Statewide				5,837,690	799,980	13.7%
Los Angeles Unified				529,902	79,906	14.8%

2022-2023 Special Education Enrollment

RG	BD	Loc Code	School	OCT 2022 Enroll #	Sp Ed Enroll #	Sp Ed Enroll %
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	998	109	10.9%
Statewide				5,852,544	765,169	13.1%
Los Angeles Unified				538,295	75,935	14.1%

2023-2024 Special Education Enrollment

RG	BD	Loc Code	School	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	MD	# OHI*	# OI	# SLD*	# SLI*	# TBI	# VI
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	81.7%	18.3%	15	0	0	2	0	1	1	0	16	1	68	10	0	1
Los Angeles Unified				66.7%	33.3%	19,082	6	200	1,178	0	988	3,410	978	11,302	543	30,274	11,688	66	189

2022-2023 Special Education Enrollment																			
RG	BD	Loc Code	School	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	MD	# OHI*	# OI	# SLD*	# SLI*	# TBI	# VI
S	5	8626	Alliance Gertz-Ressler Richard Merkin 6-12 Complex	81.7%	18.3%	16	0	0	1	0	1	1	0	14	1	67	8	0	0
Los Angeles Unified				68.3%	31.6%	16,427	5	226	1,143	1	994	3,495	354	10,342	1,065	29,411	12,139	64	248

Key			
AUT	Autism	OHI	Other Health Impairment
DB	Deaf-Blindness	OI	Orthopedic Impairment
DEAF	Deafness	SLD	Specific Learning Disability
ED	Emotional Disturbance	SLI	Speech or Language Impairment
EMD	Established Medical Disability	TBI	Traumatic Brain Injury
HOH	Hard of Hearing	VI	Visual Impairment
ID	Intellectual Disability	MD	Multiple Disabilities

Data Source: CALPADS 8.1 FALL 1 Certified Report This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS).

Alliance Gertz-Ressler Richard Merkin Academy 6-12 Complex

Alliance Gertz-Ressler Richard Merkin Academy 6-12 Complex - English Language Arts Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-5.2	9.8	Orange	-13.2	Higher
English Learner	Met	Yellow	-58.8	10.4	Orange	-67.6	Higher
Latino	Met	Green	-4.7	10.8	Orange	-39.3	Higher
Long Term English Learner	Met	Red	-122.4	-24.9	Red	-109.6	Lower
Socioeconomically Disadvantaged	Met	Yellow	-8.4	8.6	Orange	-40.9	Higher
Students with Disabilities	Met	Red	-95.6	-15.8	Red	-95.6	Same

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Alliance Gertz-Ressler Richard Merkin Academy 6-12 Complex - Math Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-65.8	12.3	Orange	-47.6	Lower
English Learner	Met	Orange	-106.9	22.9	Orange	-93.4	Lower
Latino	Met	Yellow	-64.8	13.7	Orange	-79.2	Higher
Long Term English Learner	Met	Orange	-154.9	5.6	Red	-163.5	Higher
Socioeconomically Disadvantaged	Met	Yellow	-68.1	11.7	Orange	-78.2	Higher
Students with Disabilities	Met	Orange	-146.5	8.5	Red	-124.3	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

ATTACHMENT C
**MATERIAL REVISION TO CHARTER OF
 ALLIANCE GERTZ-RESSLER RICHARD MERKIN 6-12 COMPLEX**

This Material Revision to the Charter of Alliance Gertz-Ressler Richard Merkin 6-12 Complex (“Material Revision”) is made between the Los Angeles Unified School District (“District” or “LAUSD”), a California public school district, and Alliance College-Ready Public Schools (“ACRPS”), a California non-profit public benefit corporation, operating a California public charter school known as Alliance Gertz-Ressler Richard Merkin 6-12 Complex (“Charter School” and/or “Alliance Gertz-Merkin”). District and ACRPS are also referred to individually as “Party,” and collectively as “Parties.”

This Material Revision is to be read in conjunction with and shall expressly revise the charter of Alliance Gertz-Merkin which was originally authorized by the LAUSD Board of Education (“Board of Education”) on **April 27, 2004** and last renewed on September 25, 2018 for a five-year term, from 2019 to 2024 (“Charter”) and was set to expire on June 30, 2024. However, Education Code section 47607.4 provides that all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for Charter School expires on **June 30, 2027**.

The effective date of this Material Revision is the date of approval by the Board of Education and shall be implemented starting in the second semester of the 2024-25 academic school year. This Material Revision is based upon the following factual recitals:

RECITALS

A. **WHEREAS**, the approval of charter schools is governed by the Charter Schools Act of 1992, as subsequently amended, Education Code sections 47600 et seq;

B. **WHEREAS**, as set forth in Education Code section 47607, material revisions of charters are governed by the standards and criteria described in Section 47605, and shall include, but not be limited to, a reasonably comprehensive description of any new requirement of charter schools enacted into law after the charter was originally granted or last renewed;

C. **WHEREAS**, the District’s Charter Schools Division (“CSD”) must determine whether the Charter, as materially revised, would be reasonably comprehensive, educationally sound, and demonstrably likely to be successfully implemented;

D. **WHEREAS**, a material revision includes, but is not necessarily limited to, any change that would significantly alter a charter school's mission, vision, educational philosophy, educational program, governance, or organizational structure;

E. **WHEREAS**, as set forth in the Charter, Alliance Gertz-Merkin is currently approved to serve 1,010 students in grades 6-12 and has been operating from a private facility located at 2023 South Union Avenue, Los Angeles, CA 90007;

F. **WHEREAS**, the Charter School’s governing board convened a meeting on September 11, 2024 during which it approved a Board Resolution IV-M (“Resolution”) proposing to materially revise the Charter to reflect an additional private site for the Charter School located at 2211 South Union Avenue, Los Angeles, CA, 90007. “[Alliance] Gertz-Merkin plans to utilize this additional space for classroom instruction and as a parent center.” The Resolution is attached herewith as **Attachment A** and part of this Material Revision;

G. **WHEREAS**, in the correspondence submitted to the District on or about September 5, 2024 (“September 2024 Correspondence”) in support of this Material Revision, “[o]n June 4, 2018, [ACRPS] purchased a building located approximately 500 feet from the Charter School’s 2023 South Union location, at 2211 South Union Avenue, Los Angeles, CA, 90007, title to which is held by [ACRPS], and which real property is designated as Assessor’s Parcel Number 5124-001-005 (the “Howard Lappin Center”). The Howard Lappin Center houses a performing arts space, a multipurpose room, three classrooms, and a parent center. After the Los Angeles Department of Building and Safety issued a certificate of occupancy for the Howard Lappin Center on June 12, 2022, the Charter School used the space for classroom instruction and as a parent center during the 2023-24 school year.” The September 2024 Correspondence and “copy of the Certificate of Occupancy for the Howard Lappin Center” are attached, collectively, herewith as **Attachment B** and part of this Material Revision;

H. **WHEREAS**, charter schools occupying non-LAUSD facilities must, prior to use, provide the CSD with a current Certificate of Occupancy or equivalent document issued by the applicable permitting agency allowing the charter school to use and occupy the site as a charter school for its intended purpose (i.e., applicable grade levels). Charter schools are responsible for ensuring compliance with all applicable building codes, standards, and regulations adopted by the city and/or county agencies with jurisdiction to enforce building and safety standards for the school site, as well as federal and state accessibility requirements, and all other applicable fire, health, and structural safety and access requirements;

I. **WHEREAS**, the District considers a charter school’s expansion to one or more additional sites as constituting a material revision pursuant to California law and *LAUSD Policy and Procedures for Charter Schools* (“LAUSD Policy”); and

J. **WHEREAS**, the Parties agree to materially revise the Charter to reflect the changes above, LAUSD Policy and applicable state and federal laws;

NOW, THEREFORE, in consideration of the following terms and conditions, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

MATERIAL REVISION

1. The Parties incorporate the above Recitals as if fully restated in this Material Revision.
2. **Charter School location**: The Charter shall be revised to reflect that the locations for the Charter School are as follows:

- 2023 South Union Avenue, Los Angeles, CA 90007, and
- 2211 South Union Avenue, Los Angeles, CA, 90007.

3. **Budget**: All prior budgets and cash flow projections submitted for the Charter School shall be replaced by the Charter School's revised budget(s), financial and cash flow projections incorporated and attached herewith as **Attachment C** and incorporated by reference and part of this Material Revision.

4. **Updated District Required Language**: The Charter shall be revised to update and incorporate the Board of Education approved "Federal, State, and District Required Language for Independent Charter School Petitions (New and Renewal) and Material Revisions updated August 11, 2020", attached herewith as **Attachment D** and incorporated by reference as part of this Material Revision.

5. The Charter School warrants that it is operated by a non-profit corporation in good standing in the State of California.

6. All other provisions set forth in the Charter shall remain in effect and enforceable.

7. The Parties agree that should any of the provisions of this Material Revision be judicially determined to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

8. The Parties agree to cooperate fully in the execution of any and all other documents and/or additional actions necessary and/or appropriate to give full force and effect to the terms, provisions, and intent of this Material Revision.

9. The individuals signing this Material Revision warrant that they are authorized to do so, and further, that they are authorized to make the promises in this Material Revision on behalf of the respective Parties.

IN WITNESS WHEREOF, the Parties hereto have caused this Material Revision to be duly executed and delivered in their respective names by their authorized representatives as of the date set forth below.

DATED: December____, 2024 ALLIANCE COLLEGE-READY PUBLIC SCHOOLS

By: _____

Title: _____

Authorized Representative of Alliance College-Ready Public
Schools

DATED: December____, 2024 LOS ANGELES UNIFIED SCHOOL DISTRICT

By: _____

Title: _____

Authorized Representative of Los Angeles Unified School
District

Attachments:

- A.** ACRPS Board Resolution
- B.** ACRPS September 2024 Correspondence
- C.** Updated Alliance Gertz-Merkin Budget, Financial, and Cash Flow Projections.
- D.** Federal, State, and District Required Language for Independent Charter School Petitions (New and Renewal) and Material Revisions updated August 11, 2020.



**RESOLUTION OF THE BOARD OF DIRECTORS
ALLIANCE COLLEGE-READY PUBLIC SCHOOLS
A California Public Benefit Corporation
Board Resolution IV-M**

APPROVING SUBMISSION OF CHARTER MATERIAL REVISION

WHEREAS, the Board of Directors (the “Board”) of Alliance College-Ready Public Schools (“Alliance”), a nonprofit public benefit corporation operating public charter schools, and which operates Alliance Gertz-Ressler Richard Merkin 6-12 Complex (“Gertz Merkin” or the “Charter School”), finds it in the best interest of the Charter School and in furtherance of its educational and public purposes to submit a material revision of the Gertz Merkin charter as authorized by the Los Angeles Unified School District (the “District”) and provided for in Education Code Section 47607; and

WHEREAS, all Gertz Merkin students, grades 6-12, currently attend school in the facilities located at 2023 South Union Avenue, Los Angeles, CA 90007;

WHEREAS, Alliance purchased a building located approximately 500 feet from the Charter School’s 2023 South Union location, at 2211 South Union Avenue, Los Angeles, CA, 90007, title to which is held by Alliance, and which real property is designated as Assessor’s Parcel Number 5124-001-005 (the “Howard Lappin Center”);

WHEREAS, the Los Angeles Department of Building and Safety issued a certificate of occupancy for the Howard Lappin Center on June 12, 2022, thereby allowing the Charter School to use the space for classroom instruction and as a parent center during the 2023-24 school year;

WHEREAS, Alliance had not previously considered the use of the Howard Lappin Center as a new or additional location for purposes of the Charter Schools Act requirement for material revisions;

WHEREAS, the District emailed Alliance on May 29, 2024, regarding the Charter School’s use of the Howard Lappin Center;

WHEREAS, the District has determined that it will require the Charter School to request a material revision in order for the District to authorize its use of this space; and

WHEREAS, although it does not appear that this space triggers the statutory requirements for a material revision, the Board nevertheless desires to conform to the District’s requirements.

NOW THEREFORE, BE IT RESOLVED, that Alliance shall prepare a material revision of the Gertz Merkin charter for submission to the District, as follows:



1. The Board authorizes and directs the Chief Executive Officer (“CEO”) or his designee to prepare and sign the request for a material revision, execute the amendment document, and otherwise act on behalf of Alliance with respect to the material revision application process, and carry out all activities deemed necessary or desirable in that regard.
2. The request for material revision shall update the Gertz Merkin charter to include an Appendix entitled “School Facilities,” identifying and describing the Howard Lappin Center as an additional space to be used by the Charter School, which is the complete nature and scope of the revision.

SECRETARY’S CERTIFICATE

I, Virgil Roberts, Secretary of the Board of Directors of Alliance College-Ready Public Schools, a California nonprofit public benefit corporation, County of Los Angeles, California, hereby certify as follows:

The attached is a full, true, and correct copy of a resolution duly adopted at a meeting of the Board of Directors, which was duly and regularly held on the 11th day of September, 2024, at which meeting all of the members of the Board of Directors had due notice and at which a quorum thereof was present; and at such meeting such resolution was adopted by the following vote:

AYES:

NOES:

ABSTAIN:

ABSENT:

I have carefully compared the same with the original minutes of such meeting on file and of record in my office; the attached resolution is a full, true, and correct copy of the original resolution adopted at such meeting and entered in such minutes; and such resolution has not been amended, modified, or rescinded since the date of its adoption, and the same is now in full force and effect.

WITNESS my hand this _____ day of _____, 2024.

Secretary of the Board of Directors of
Alliance College-Ready Public Schools



September 5, 2024

Via Email
jose.cole-gutierrez@lausd.net

José Cole-Gutiérrez, Director
Charter Schools Division
Los Angeles Unified School District
333. S. Beaudry Ave., 20th Floor
Los Angeles, CA 90017

**RE: Request for Material Revision of Alliance Gertz-Ressler Richard Merkin 6-12
Complex Charter Petition**

Dear Director Cole-Gutiérrez:

On behalf of Alliance College-Ready Public Schools (“Alliance”), which operates Alliance Gertz-Ressler Richard Merkin 6-12 Complex (“Gertz-Merkin” or the “Charter School”), I am writing to request a revision to the Gertz-Merkin charter petition to include use of a nearby facility for student instructional purposes. A draft Board Resolution authorizing submission of the material revision is included as Attachment A.

The nature and scope of the change associated with this material revision is to include an appendix to the charter titled “School Facilities,” which describes an additional space purchased by Alliance located approximately 500 feet from the Charter School’s existing location to be utilized for the Charter School’s use. Starting with the 2025-26 school year, and pending the approval of the Los Angeles Unified School District (“LAUSD” or the “District”), Gertz-Merkin plans to utilize this additional space for classroom instruction and as a parent center.

All Gertz-Merkin students, grades 6-12, currently attend school in the facilities located at 2023 South Union Avenue, Los Angeles, CA 90007. On June 4, 2018, Alliance purchased a building located approximately 500 feet from the Charter School’s 2023 South Union location, at 2211 South Union Avenue, Los Angeles, CA, 90007, title to which is held by Alliance, and which real property is designated as Assessor’s Parcel Number 5124-001-005 (the “Howard Lappin Center”). The Howard Lappin Center houses a performing arts space, a multipurpose room, three classrooms, and a parent center. After the Los Angeles Department of Building and Safety issued a certificate of occupancy for the Howard Lappin Center on June 12, 2022, the Charter School used the space for classroom instruction and as a parent center during the 2023-24 school year.

On May 29, 2024, the District emailed Alliance regarding the Charter School’s use of the Howard Lappin Center. While Gertz-Merkin’s use of the Howard Lappin Center does not

materially change its operations, the District has determined that it will require the Charter School to request a material revision in order for the District to authorize its use of this space. Although it does not appear that this space triggers the statutory requirements to require a material revision, the Board nevertheless desires to conform to the District's requirements.

The requested change is educationally sound. Gertz-Merkin has operated successfully for over ten full school years and its students have earned Color Ratings in Math on the 2023 California School Dashboard that are equal or superior to neighboring schools and LAUSD as a whole. In addition, on the 2023 California School Dashboard, students at Gertz-Merkin have earned DFS scores in Math that are greater than neighboring schools. They also earned DFS scores in English Language Arts that are greater than four out of five neighboring schools and LAUSD as a whole. We believe the performance of the students at Gertz-Merkin is an indication of the value that this school brings to its community. The Expansion Space will allow the school to continue to live up to the goals of its charter petition to provide a safe, calm, welcoming atmosphere that reflects the diversity of the community and the school's focus on getting ready for college. Additionally, the addition of the parent center reflects the school's commitment in its charter to parent engagement. The Charter School's address will not change, and the Charter School is not seeking to increase its charter enrollment capacity. A copy of the Certificate of Occupancy for the Howard Lappin Center is attached as Attachment B.

The clear identification and description of each addition and change to the charter petition will consist of the following:

- Page 176: Additional Provisions
 - "For a description of all facilities utilized by the Charter School, please see Appendix A ("School Facilities")."
 - Appendix A will be attached to include a description of the additional spaces utilized by the Charter School.

Alliance looks forward to working with LAUSD to efficiently and timely process this request. Should you have any questions, please do not hesitate to contact me at twilson@laalliance.org.

Sincerely,



Tiffany Wilson,
Chief Operating Officer

Annual Forecast w/ Assumptions

Gertz-Ressler High School/Richar-Merkin Complex

		2024-25	2025-26	2026-27
Revenues				
	Total private grants and contributions	\$0	\$0	\$0
	Total Federal Revenue	\$1,307,781	\$1,320,859	\$1,334,067
	Total State Revenue	\$16,899,715	\$16,629,022	\$17,045,412
	Total Local Revenue	\$2,801,864	\$2,885,920	\$2,972,498
	Total Other Revenue	\$119,260	\$43,383	\$44,122
Total Revenue		\$21,128,619	\$20,879,184	\$21,396,099
Expenses				
	Total Salaries	\$8,495,688	\$8,104,107	\$8,285,654
	Total Benefits	\$3,207,834	\$3,026,771	\$3,120,465
	Total Books and Supplies	\$1,343,079	\$1,385,321	\$1,398,634
	Total Subagreement Services	\$1,299,183	\$1,312,174	\$1,325,296
	Total Travel and Conference	\$108,450	\$109,535	\$110,630
	Total Dues & Memberships	\$32,180	\$32,502	\$32,827
	Total Insurance	\$113,242	\$114,374	\$115,518
	Total Ops and Housekeeping	\$64,076	\$64,717	\$65,364
	Total Rentals, Leases and Repairs	\$1,799,981	\$1,708,002	\$1,708,002
	Total Transfers	\$6,237	\$6,237	\$6,237
	Total Professional Services and Operating Exp.	\$4,370,933	\$4,410,109	\$4,497,161
	Total Communications	\$105,687	\$106,744	\$107,812
	Total depreciation	\$420,356	\$420,356	\$420,356
	Total interest	\$0	\$0	\$0
Total Expenses		\$21,366,926	\$20,800,950	\$21,193,955
Surplus (Deficit)		(\$238,307)	\$78,234	\$202,143
Net Asset Reserves		\$13,629,850	\$14,014,455	\$14,519,483

Cash Flow Adjustments			
Monthly Surplus (Deficit)	(\$238,307)	\$78,234	\$202,143
Cash flows from operating activities:			
Depreciation/amortization	\$420,356	\$420,356	\$420,356
Public funding receivables, net	\$0	\$0	\$0
Grants, contributions and pledges receivable, net	(\$11,822)	(\$11,822)	(\$11,822)
Due to/from related parties	\$0	\$0	\$0
Prepaid expenses	\$101,872	\$101,872	\$101,872
Deferred Rent Receivable	\$0	\$0	\$0
Other assets	\$0	\$0	\$0
Accounts payable and accrued expenses	\$0	\$0	\$0
Accrued Admin. Svc. Fee	\$0	\$0	\$0
Deferred Rent	\$0	\$0	\$0
Total	\$272,100	\$588,641	\$712,550
Cash flows from investing activities:			
Purchases of property and equipment (Non-E-Rate)	\$0	\$0	\$0
Purchases of property and equipment (E-Rate)	\$0	\$0	\$0
Notes receivable	\$0	\$0	\$0
Total	\$0	\$0	\$0
Cash flows from financing activities:			
Principal payments of debt	\$0	\$0	\$0
Proceeds from long-term debt	\$0	\$0	\$0
Payments on capital lease obligation	\$0	\$0	\$0
Assets limited as to use	\$0	\$0	\$0
Total	\$0	\$0	\$0
Total Change in Cash	\$272,100	\$588,641	\$712,550
Cash, Beginning of Period	\$6,395,127	\$6,667,227	\$7,255,868
Cash, End of Period	\$6,667,227	\$7,255,868	\$7,968,419
Cash Reserves % of Budgeted Cash Expenses	32%	36%	38%

Long Term Assumptions

	2024-25	2025-26	2026-27
<u>Student Data</u>			
Enrollment	1,010.0	1,010.0	1,010.0
ADA	958.6	958.6	958.6
ADA %	95%	95%	95%
FRL	95%	95%	95%
ELL	16%	16%	16%
<u>Federal Revenue Data</u>			
Federal Special Education (IDEA) per Student	\$245	\$247	\$250
Title I, Part A - Basic Low Income	\$405,911	\$409,970	\$414,070
Title II, Part D - EETT	\$81,136	\$81,947	\$82,767
Title V, Part B - Charter School Grants	\$0	\$0	\$0
Title III	\$0	\$0	\$0
Fed Breakfast Rate	\$2.05	\$2.07	\$2.09
Fed Lunch Rate	\$3.30	\$3.33	\$3.37
<u>State Revenue Data</u>			
LCFF per Student - High School	\$17,281	\$17,800	\$18,334
LCFF per Student - Middle School	\$14,391	\$14,823	\$15,268
Growth		3.0%	3.0%
Mandate Block Grant	\$56	\$56	\$56
State Lottery Revenue	\$249	\$249	\$249
Special Ed Instructional Entitlement	\$971	\$1,000	\$1,030
School Facilities Apportionment (SB740)	\$810,883	\$785,205	\$785,205
State Breakfast Rate	\$0.24	\$0.24	\$0.24
State Lunch Rate	\$0.24	\$0.24	\$0.24
<u>Staff Roster Data</u>			
Teachers	54	54	54
Certificated Pupil Support	-	-	-
Administrators	8	8	8
Counselors	10	8	8
Total Certificated Staff	72	70	70
Students to Teacher Ratio - High School	18	18	18
Students to Certificated Staff Ratio - High School	13	13	13
Avg.Teacher Pay - High School	87,464	89,588	91,766
Teacher Salary Growth		3%	3%
Students to Teacher Ratio - Middle School	20	20	20
Students to Certificated Staff Ratio - Middle School	15	16	16
Avg.Teacher Pay	89,435	91,607	93,833
Teacher Salary Growth		3%	3%
Classified Instructional Aides (2100)	10	5	5
Classified Office Support (2200)	10	9	9
Classified Admin Support (2300)	5	6	6
Clerical, Technical Staff (2400)	6	3	3
Other Classified Staff (2900)	5	4	4
Total Classified Staff	36	27	27
Total Staff	108	96	96
STRS Contribution Rate	19.10%	19.10%	19.10%
PERS Contribution Rate	27.80%	27.80%	27.80%
Healthcare Employer Contribution per Staff Member - High School	\$10,864	\$11,407	\$11,977
Healthcare Employer Contribution per Staff Member - Middle School	\$10,392	\$10,912	\$11,457
Alliance Home Office Admin Fee	12.0%	12.0%	12.0%
District Oversight Fee	1.0%	1.0%	1.0%
SELPA Fees	20.0%	20.0%	20.0%

Prior Year P2 and PENSEC Estimates										P-1		P-2		Total
	Jul-25	Aug-25	Sep-25	Oct-25	Nov-25	Dec-25	Jan-26	Feb-26	Mar-26	Apr-26	May-26	Jun-26		
Professional/Consulting Services and Operating Expenditures														
5801	General Operating Expenditures (Before FY17: IT)	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5802	Accounting - Professional and Consulting Services	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	2,497.6	\$29,971
5803	Legal- Professional and Consulting Services	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	23,230.9	\$278,770
5805	General - Professional and Consulting Services	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	62,486.2	\$749,834
5807	IT Services - Professional and Consulting Services	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	5,447.0	\$65,363
5810	Payroll Service Fee	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5811	Administrative Services Fee	\$95,189	\$129,926	\$325,565	\$158,584	\$164,978	\$185,423	\$376,555	\$161,849	\$290,191	\$135,727	\$159,284	\$317,025	\$2,500,296
5812	District Oversight Fee	\$5,737	\$7,469	\$10,096	\$10,096	\$10,096	\$10,096	\$10,096	\$10,288	\$8,749	\$8,749	\$8,749	\$8,749	\$108,971
5813	LACOE Fees	\$0.00	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
5814	SELPA Fees	\$14,347	\$28,694	\$23,911	\$23,911	\$23,911	\$23,911	\$23,911	\$25,505	\$12,753	\$12,753	\$12,753	\$12,753	\$239,113
5815	Rent Equalization Fee(Credit)	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
5817	Other taxes and fees	306.7	306.7	306.7	306.7	306.7	306.7	306.7	306.7	306.7	306.7	306.7	306.7	\$3,680
5821	Professional Development Reimbursement	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5822	Temporary Administrative Support	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5831	Food or Catering Services	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	14,724.3	\$176,692
5832	Entrance Fees	662.1	662.1	662.1	662.1	662.1	662.1	662.1	662.1	662.1	662.1	662.1	662.1	\$7,945
5833	Transportation Services	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	6,695.2	\$80,342
5834	Software - Operating	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	12,958.7	\$155,505
5835	Printing - General	936.7	936.7	936.7	936.7	936.7	936.7	936.7	936.7	936.7	936.7	936.7	936.7	\$11,241
5840	Scholarship Expense	198.7	198.7	198.7	198.7	198.7	198.7	198.7	198.7	198.7	198.7	198.7	198.7	\$2,385
5841	Mentorship Program Awards	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5842	Relocation	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5899	Pledge Write Off	-	-	-	-	-	-	-	-	-	-	-	-	\$0
Total Professional Services and Opening Exp.		\$245,417	\$296,232	\$489,716	\$322,735	\$329,130	\$349,575	\$540,706	\$327,787	\$441,837	\$287,373	\$310,930	\$468,671	\$4,410,109
Communications														
5901	General Communications	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	6,968.1	\$83,617
5902	Postage and Shipping	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	1,253.9	\$15,047
5903	Job Advertising	673.3	673.3	673.3	673.3	673.3	673.3	673.3	673.3	673.3	673.3	673.3	673.3	\$8,080
Total Communications		\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$8,895	\$106,744
Depreciation														
6900	Depreciation Expense	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$420,356
Total depreciation		\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$420,356
Interest														
7438	Interest Expense	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Total interest		\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Total Expenses		\$1,103,126	\$1,685,029	\$1,904,895	\$1,737,913	\$1,744,308	\$1,764,753	\$1,955,884	\$1,742,965	\$1,857,015	\$1,702,552	\$1,726,108	\$1,876,403	\$20,800,950
Monthly Surplus (Deficit)		(\$306,371)	(\$598,192)	\$812,272	(\$412,563)	(\$366,279)	(\$216,656)	\$1,184,978	(\$391,625)	\$563,537	(\$567,976)	(\$394,621)	\$771,729	\$78,234
Net Asset Reserves		\$13,629,850	\$13,031,658	\$13,843,930	\$13,431,367	\$13,065,088	\$12,848,432	\$14,033,410	\$13,641,785	\$14,205,322	\$13,637,346	\$13,242,726	\$14,014,455	\$14,014,455

		Jul-26	Aug-26	Sep-26	Oct-26	Nov-26	Dec-26	Jan-27	Feb-27	Mar-27	Apr-27	May-27	Jun-27	Total
Professional/Consulting Services and Operating Expenditures														
5801	General Operating Expenditures (Before FY17: IT)	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5802	Accounting - Professional and Consulting Services	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	2,522.6	\$30,271
5803	Legal- Professional and Consulting Services	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	23,463.2	\$281,558
5805	General - Professional and Consulting Services	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	63,111.0	\$757,332
5807	IT Services - Professional and Consulting Services	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	5,501.4	\$66,017
5810	Payroll Service Fee	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5811	Administrative Services Fee	\$97,493	\$133,126	\$334,252	\$162,655	\$169,050	\$189,691	\$385,045	\$166,014	\$298,022	\$139,140	\$162,696	\$325,053	\$2,562,237
5812	District Oversight Fee	\$5,909	\$7,693	\$10,399	\$10,399	\$10,399	\$10,399	\$10,399	\$10,597	\$9,012	\$9,012	\$9,012	\$9,012	\$112,240
5813	LACOE Fees	\$0.00	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
5814	SELPA Fees	\$14,720	\$29,441	\$24,534	\$24,534	\$24,534	\$24,534	\$24,534	\$26,169	\$13,085	\$13,085	\$13,085	\$13,085	\$245,338
5815	Rent Equalization Fee(Credit)	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
5817	Other taxes and fees	309.7	309.7	309.7	309.7	309.7	309.7	309.7	309.7	309.7	309.7	309.7	309.7	\$3,717
5821	Professional Development Reimbursement	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5822	Temporary Administrative Support	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5831	Food or Catering Services	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	14,871.5	\$178,458
5832	Entrance Fees	668.7	668.7	668.7	668.7	668.7	668.7	668.7	668.7	668.7	668.7	668.7	668.7	\$8,025
5833	Transportation Services	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	6,762.1	\$81,146
5834	Software - Operating	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	13,088.3	\$157,060
5835	Printing - General	946.1	946.1	946.1	946.1	946.1	946.1	946.1	946.1	946.1	946.1	946.1	946.1	\$11,353
5840	Scholarship Expense	200.7	200.7	200.7	200.7	200.7	200.7	200.7	200.7	200.7	200.7	200.7	200.7	\$2,409
5841	Mentorship Program Awards	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5842	Relocation	-	-	-	-	-	-	-	-	-	-	-	-	\$0
5899	Pledge Write Off	-	-	-	-	-	-	-	-	-	-	-	-	\$0
Total Professional Services and Opering Exp.		\$249,568	\$301,705	\$500,630	\$329,033	\$335,428	\$356,069	\$551,424	\$334,226	\$451,564	\$292,681	\$316,238	\$478,595	\$4,497,161
Communications														
5901	General Communications	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	7,037.8	\$84,453
5902	Postage and Shipping	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	1,266.5	\$15,198
5903	Job Advertising	680.1	680.1	680.1	680.1	680.1	680.1	680.1	680.1	680.1	680.1	680.1	680.1	\$8,161
Total Communications		\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$8,984	\$107,812
Depreciation														
6900	Depreciation Expense	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$420,356
Total depreciation		\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$35,030	\$420,356
Interest														
7438	Interest Expense	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Total interest		\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Total Expenses		\$1,118,896	\$1,717,015	\$1,942,591	\$1,770,993	\$1,777,388	\$1,798,030	\$1,993,384	\$1,776,187	\$1,893,524	\$1,734,642	\$1,758,198	\$1,913,109	\$21,193,955
Monthly Surplus (Deficit)		(\$302,885)	(\$603,438)	\$847,041	(\$411,650)	(\$365,378)	(\$214,318)	\$1,218,279	(\$390,093)	\$592,324	(\$571,572)	(\$398,204)	\$802,038	\$202,143
Net Asset Reserves		\$14,014,455	\$13,411,017	\$14,258,058	\$13,846,408	\$13,481,030	\$13,266,711	\$14,484,990	\$14,094,897	\$14,687,221	\$14,115,649	\$13,717,445	\$14,519,483	\$14,519,483



Los Angeles Unified School District

Federal, State, and District Required Language for Independent Charter School Petitions (New and Renewal) and Material Revisions

Updated August 11, 2020

LOS ANGELES UNIFIED SCHOOL DISTRICT
Charter Schools Division
333 South Beaudry Avenue, 20th Floor
Los Angeles, CA 90017
213-241-0399

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Federal, State and District Required Language for Independent Charter School Petitions (New and Renewal) and Material Revisions

Dear Applicants:

On the following pages, you will find the “Federal, State, and District Required Language” (“FSDRL”) that must be included in a comprehensive independent charter school petition.*

Please follow the instructions below:

- ☐ Check the Charter Schools Division website (<http://charterschools.lausd.net>) to ensure that this document is the current version of the FSDRL, as it may be changed from time to time.
- ☐ Provide the “Assurances, Affirmations, and Declarations” page (the first two pages of the FSDRL) at the beginning of the petition, immediately after the table of contents.
- ☐ Place the FSDRL for each Element at the beginning of the Element under the Element heading. Use the Element headings provided in the FSDRL, including the statutory language for each Element.
- ☐ Highlight all FSDRL in gray, as shown here, to facilitate easy identification of the FSDRL within the petition. Do not highlight any other text in gray.
- ☐ On the “Assurances, Affirmations, and Declarations” page, replace “[Charter School]” with the name of the proposed charter school and replace “[short form of school name]” with an appropriate identifier.
- ☐ Do not add, delete, or change any provision of the FSDRL other than the instruction above.
- ☐ **Ensure that all other provisions in the charter petition do not duplicate and are otherwise consistent with the provisions of the FSDRL.**

***NOTE: Public School Choice (PSC) charter schools seeking renewal must include in their renewal petitions the PSC-specific version of the FSDRL. Other charter schools, such as conversion independent and non-classroom based charter schools, may be required to include context-specific FSDRL as well.**

Assurances, Affirmations, and Declarations

[Charter School] (also referred to herein as “[short form of school name]” and “Charter School”) shall:

- Be nonsectarian in its programs, admission policies, employment practices, and all other operations. (California Education Code (hereinafter “Ed. Code”) § 47605(e)(1).)
- Not charge tuition. (Ed. Code § 47605(e)(1).)
- Not discriminate against any pupil on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in section 422.55 of the Penal Code, including immigration status. (Ed. Code § 47605(e)(1); Ed. Code § 220.)
- Except as provided in Education Code section 47605(e)(2), admission to a charter school shall not be determined according to the place of residence of the pupil, or of his or her parent or legal guardian, within this state, except that an existing public school converting partially or entirely to a charter school under this part shall adopt and maintain a policy giving admission preference to pupils who reside within the former attendance area of that school. (Ed. Code § 47605(e)(1).)
- Admit all pupils who wish to attend Charter School. (Ed. Code § 47605(e)(2)(A).)
- Except for existing pupils of Charter School, determine attendance by a public random drawing if the number of pupils who wish to attend Charter School exceeds Charter School’s capacity. Preference shall be extended to pupils currently attending Charter School and pupils who reside in the Los Angeles Unified School District (also referred to herein as “LAUSD” and “District”). Preferences shall not result in limiting enrollment access for pupils with disabilities, academically low-achieving pupils, English learners, neglected or delinquent pupils, homeless pupils, or pupils who are economically disadvantaged, as determined by eligibility for any free or reduced-price meal program, foster youth, or pupils based on nationality, race, ethnicity, or sexual orientation, and shall not require mandatory parental volunteer hours as a criterion for admission or continued enrollment. (Ed. Code § 47605(e)(2)(B).)
- Charter school shall not encourage a pupil currently attending the Charter School to disenroll from the Charter School or transfer to another school for any reason, including, but not limited to, academic performance of the pupil or because the pupil exhibits any of the characteristics described in Education Code section 47605(e)(2)(B)(iii). (Ed. Code § 47605(e)(4).)
- If a pupil is expelled or leaves Charter School without graduating or completing the school year for any reason, Charter School shall notify the superintendent of the school district of the pupil’s last known address within 30 days, and shall, upon request, provide that school district with a copy of the cumulative record of the pupil, including a transcript of grades or report card, and health information. (Ed. Code § 47605(e)(3).)

- Meet all statewide standards and conduct the pupil assessments required pursuant to Education Code sections 60605 and 60851 and any other statewide standards authorized in statute or pupil assessments applicable to pupils in non-charter public schools. (Ed. Code § 47605(d)(1).)
- Consult, on a regular basis, with Charter School’s parents, legal guardians, and teachers regarding the school’s educational programs. (Ed. Code § 47605(d)(2).)

Charter School hereby declares that Charter School, operated as or by its nonprofit public benefit corporation, is and shall be the exclusive public school employer of Charter School’s employees for the purposes of the Educational Employment Relations Act (EERA), Chapter 10.7 (commencing with Section 3540) of Division 4 of Title I of the Government Code. Charter School shall comply with all provisions of the EERA and shall act independently from LAUSD for collective bargaining purposes. In accordance with the EERA, employees may join and be represented by an organization of their choice for collective bargaining purposes.

NOTE: This Charter contains specific “Federal, State and District Required Language” (FSDRL), including the *Assurances, Affirmations, and Declarations* section above. The FSDRL should be highlighted in gray within each Charter element or section. The final section of the Charter provides a consolidated addendum of the FSDRL. This intentional redundancy facilitates efficient charter petition review while ensuring ready access to the FSDRL for any given section of the Charter. To the extent that any inconsistency may exist between any provision contained within the body of the Charter and the FSDRL contained in the addendum, the provisions of the FSDRL addendum shall control.

Element 1 – The Educational Program

“The educational program of the charter school, designed, among other things, to identify those whom the charter school is attempting to educate, what it means to be an “educated person” in the 21st century, and how learning best occurs. The goals identified in that program shall include the objective of enabling pupils to become self-motivated, competent, and lifelong learners.” (Ed. Code § 47605(c)(5)(A)(i).)

“The annual goals for the charter school for all pupils and for each subgroup of pupils identified pursuant to Section 52052, to be achieved in the state priorities, as described in subdivision (d) of Section 52060, that apply for the grade levels served, and specific annual actions to achieve those goals. A charter petition may identify additional school priorities, the goals for the school priorities, and the specific annual actions to achieve those goals.” (Ed. Code § 47605(c)(5)(A)(ii).)

“If the proposed charter school will serve high school pupils, a description of the manner in which the charter school will inform parents about the transferability of courses to other public high schools and the eligibility of courses to meet college entrance requirements. Courses offered by the charter school that are accredited by the Western Association of Schools and Colleges may be considered transferable and courses approved by the University of California or the California State University as creditable under the “A” to “G” admissions criteria may be considered to meet college entrance requirements.” (Ed. Code § 47605(c)(5)(A)(iii).)

LOCAL CONTROL FUNDING FORMULA (LCFF) AND LOCAL CONTROL AND ACCOUNTABILITY PLAN (LCAP)

Charter School acknowledges and agrees that it must comply with all applicable laws and regulations related to AB 97 (2013) (Local Control Funding Formula), as they may be amended from time to time, which include the requirement that Charter School shall annually submit a Local Control and Accountability Plan (LCAP)/annual update to the Los Angeles County Superintendent of Schools and the Charter Schools Division (CSD) on or before July 1. In accordance with Education Code sections 47604.33 and 47606.5, Charter School shall annually update its goals and annual actions to achieve those goals identified in the charter pursuant to Education Code section 47605(c)(5)(A)(ii), using the Local Control and Accountability Plan template adopted by the State Board of Education, as it may be changed from time to time. Charter School shall comply with all requirements of Education Code section 47606.5, including but not limited to the requirement that Charter School “shall consult with teachers, principals, administrators, other school personnel, parents, and pupils in developing the local control and accountability plan and annual update to the local control and accountability plan.” (Ed. Code § 47606.5(d).)

ACADEMIC CALENDAR AND SCHEDULES

Charter School shall offer, at a minimum, the number of minutes of instruction set forth in Education Code section 47612.5, and the number of school days required by California Code of Regulations, title 5, section 11960.

MATHEMATICS PLACEMENT

Charter School shall comply with all applicable requirements of the California Mathematics Placement Act of 2015.

TRANSITIONAL KINDERGARTEN

Charter School shall comply with all applicable requirements regarding transitional kindergarten. For purposes of admission to Charter School, transitional kindergarten shall be considered a part of kindergarten, and therefore students enrolled in transitional kindergarten at Charter School shall be considered existing students of Charter School for purposes of Charter School’s admissions, enrollment, and lottery.

WASC ACCREDITATION

If Charter School serves students in grades 9-12, before Charter School graduates its first class of students, Charter School shall obtain, and thereafter maintain, Western Association of Schools and Colleges (WASC) accreditation.

ENGLISH LEARNERS

Charter School shall identify potential English Learners in a timely manner in accordance with all applicable legal requirements. Charter School must provide all English Learners with an effective English language acquisition program that also affords meaningful and equitable access to Charter School’s core academic curriculum. Instructional plans for English Learners must be (1) based on

sound educational theory; (2) adequately supported with trained teachers and appropriate materials and resources; and (3) periodically evaluated to make sure the program is successful and modified when the program is not successful.

On an annual basis, upon request, Charter School shall submit a certification to the LAUSD Charter Schools Division (CSD) that certifies that Charter School has adopted and is implementing either the LAUSD Master Plan for English Learners and Standard English Learners *or* Charter School's own English Learner (EL) Master Plan. If Charter School chooses to implement its own EL Master Plan, the plan shall provide a detailed description of Charter School's EL program, and shall address the following:

- How Charter School's EL Master Plan provides all of its English Learners, including but not limited to Long Term English Learners (LTELs) with an effective English language acquisition program as well as meaningful and equitable access to Charter School's core academic curriculum
- How English Learners' specific needs will be identified
- What services will be offered
- How, where, and by whom the services will be provided
- How Charter School will evaluate its EL program each year, and how the results of this evaluation will be used to improve the program, including the provision of EL services

Each year, Charter School shall provide to the CSD a report on its annual evaluation of the effectiveness of its EL program. Upon request, Charter School shall provide a copy of its current EL Master Plan to the CSD.

Charter School shall administer the CELDT/ELPAC annually in accordance with federal and state requirements.

Charter School shall reclassify English Learners in accordance with federal and state requirements.

Charter School shall provide parent outreach services and meaningfully inform parents with limited English proficiency of important information regarding Charter School matters to the same extent as other parents.

STUDENTS WITH DISABILITIES

Federal Law Compliance

Charter School shall adhere to all provisions of federal law related to students with disabilities including, but not limited to, section 504 of the Rehabilitation Act of 1973, Title II of the Americans with Disabilities Act of 1990, and the Individuals with Disabilities Education Improvement Act of 2004.

Special Education Program

Charter School shall ensure that no student otherwise eligible to enroll in Charter School shall be denied, directly or indirectly, admission due to a disability or to Charter School's inability to provide necessary services. Charter School acknowledges that policies and procedures are in place

to ensure the recruitment, enrollment, service, and retention of students with disabilities at LAUSD-authorized charter schools, including Charter School.

Prior to LAUSD Board of Education approval of an initial Charter petition, and if a renewing Charter School intends to operate as a “school of the district” for special education services, Charter School shall execute a Memorandum of Understanding (“MOU”) by and between LAUSD and Charter School regarding the provision and funding of special education services consistent with applicable state law and the LAUSD Special Education Local Plan Area (“SELPA”) Local Plan for Special Education and shall be considered a “public school of the District” for purposes of Special Education pursuant to Education Code section 47641(b). However, Charter School reserves the right to make written verifiable assurances that it may become an independent local educational agency (LEA) and join a SELPA pursuant to Education Code section 47641(a) either on its own or with a grouping of charter school LEAs as a consortium following the requirements of Education Code section 56195.3(b). In this instance, Charter School will execute a MOU with LAUSD on provisions of special education as a member of a non-LAUSD SELPA.

SELPA Reorganization

The Los Angeles Unified School District is approved to operate as a single-District SELPA under the provisions of Education Code section 56195.1(a). As a single-District SELPA, the District has created two charter school sections (District-operated Programs and Charter-operated Programs) under the administration of one single Administrative Unit pursuant to a reorganization plan approved by the Board of Education on January 4, 2011 (149/10-11). Full implementation of the reorganized LAUSD SELPA commenced in the 2013-2014 school year requiring all District-authorized charter schools to elect one of the three options available under the LAUSD SELPA. Prior to an option election, all District-authorized charter schools were required to participate as a school of the District under the District-Operated Programs Unit. Prior to the beginning of the 2013-2014 school year, all District-authorized charter schools, other than those that had previously executed an Option 3 Memorandum of Understanding (“MOU”), were required to execute a new MOU setting forth the LAUSD SELPA option election for the remainder of the charter petition term. The Charter-operated Program schools do not have LEA status for the purposes of special education but will function in a similar role in that each charter school will be responsible for all special education requirements, including but not limited to services, placement, due process, related services, special education classes, and special education supports. Charter schools that have elected to participate in a District-operated programs option may apply for membership in the Charter-operated Program section of the SELPA. Charter schools accepted for participation in the Charter-operated Programs section receive support from a Special Education Director for the Charter-operated Programs.

Use of District’s Special Education Policies and Procedures and Data Systems

All charter schools approved by the LAUSD Board of Education are bound by and must adhere to the terms, conditions and requirements of orders imposed upon the District pertaining to special education. All charter schools are required to use the District’s Special Education Policies and Procedures Manual and Welligent, the District-wide web-based software system used for online Individualized Education Programs (“IEPs”) and tracking of related services provided to students during the course of their education.

All charter schools are required to interface with My Integrated Student Information System (MiSiS) via a web based Application Programming Interface (API). MiSiS is a suite of applications which is designed to capture all student data. .

**Element 2 – Measurable Pupil Outcomes and
Element 3 – Method by which Pupil Progress Toward Outcomes will be
Measured**

“The measurable pupil outcomes identified for use by the charter school. “Pupil outcomes,” for purposes of this part, means the extent to which all pupils of the school demonstrate that they have attained the skills, knowledge, and attitudes specified as goals in the school’s educational program. Pupil outcomes shall include outcomes that address increases in pupil academic achievement both schoolwide and for all pupil subgroups served by the charter school, as that term is defined in subdivision (a) of Section 52052. The pupil outcomes shall align with the state priorities, as described in subdivision (d) of Section 52060, that apply for the grade levels served by the charter school.” (Ed. Code § 47605(c)(5)(B).)

“The method by which pupil progress in meeting those pupil outcomes is to be measured. To the extent practicable, the method for measuring pupil outcomes for state priorities shall be consistent with the way information is reported on a school accountability report card.” (Ed. Code § 47605(c)(5)(C).)

MEASURABLE GOALS OF THE EDUCATIONAL PROGRAM

Charter School shall meet all statewide content and performance standards and targets. (Ed. Code §§ 47605(d)(1), 60605.)

Charter School shall comply with all applicable laws and regulations related to AB 97 (2013) (Local Control Funding Formula) and AB 484 (2013), as they may be amended from time to time, including all requirements pertaining to pupil outcomes.

STANDARDIZED TESTING

Charter School agrees to comply with state requirements for participation and administration of all state-mandated tests, including computer-based assessments. Charter School shall submit and maintain complete, accurate, and up-to-date California Longitudinal Pupil Achievement Data System (CALPADS) data in accordance with the requirements of California Code of Regulations, title 5, section 861. Charter School hereby grants authority to the State of California to provide a copy of all test results directly to the District as well as Charter School. Upon request, Charter School shall submit, in the requested format (e.g., CD), a copy of the results of all state-mandated tests to the District.

Element 4 – Governance

“The governance structure of the charter school, including, but not limited to, the process to be followed by the charter school to ensure parental involvement.” (Ed. Code § 47605(c)(5)(D).)

GENERAL PROVISIONS

As an independent charter school, Charter School, operated as or by its nonprofit public benefit corporation, is a separate legal entity and shall be solely responsible for the debts and obligations of Charter School.

Charter School shall not be operated as, or be operated by, a for-profit corporation, a for-profit educational management organization, or a for-profit charter management organization. (Ed. Code § 47604.)

Charter School shall ensure that, at all times throughout the term of the Charter, the bylaws of its governing board and/or nonprofit corporation are and remain consistent with the provisions of this Charter. In the event that the governing board and/or nonprofit corporation operating Charter School amends the bylaws, Charter School shall provide a copy of the amended bylaws to CSD within 30 days of adoption.

Charter School shall comply with the Ralph M. Brown Act (“Brown Act”). All meetings of the Charter School’s governing board shall be called, held and conducted in accordance with the terms and provisions of Education Code section 47604.1 and the Brown Act including, but not limited to, those related to meeting access and recording, notice, agenda preparation, posting and reporting.

Charter School shall send to the CSD copies of all governing board meeting agendas at the same time that they are posted in accordance with the Brown Act. Charter School shall also send to the CSD copies of all board meeting minutes within one week of governing board approval of the minutes. Timely posting of agendas and minutes on Charter School’s website will satisfy this requirement.

The District reserves the right to appoint a single representative to the Charter School governing board pursuant to Education Code section 47604(c).

LEGAL AND POLICY COMPLIANCE

Charter School shall comply with all applicable federal, state, and local laws and regulations, and District policies as it relates to charter schools adopted through Board action.

Charter School shall comply with all applicable federal and state reporting requirements, including but not limited to the requirements of CBEDS, CALPADS, the Public Schools Accountability Act of 1999, and Education Code section 47604.33.

Charter School shall comply with the Brown Act and the California Public Records Act.

The Charter School shall comply with Government Code Section 1090, et seq., as set forth in Education Code section 47604.1.

Charter School shall comply with the Political Reform Act of 1974. (Gov. Code § 81000 et seq.)

Charter School and all employees and representatives of Charter School, including members of Charter School's governing board, members of Charter School or governing board committees and councils, Charter School administrators, and managers, shall comply with federal and state laws, nonprofit integrity standards, and LAUSD charter school policy, regarding ethics and conflicts of interest. Charter School shall enter into all transactions and conduct business with all persons and entities at arm's length or, in the case of otherwise permissible related party transactions, in a manner equivalent to arm's length.

Charter School shall notify parents, guardians, and teachers in writing within 72 hours of the issuance of a Notice of Violation, Notice of Intent to Revoke, Final Decision to Revoke, Notice of Non-Renewal, or equivalent notice, by the LAUSD Board of Education.

TITLE IX, SECTION 504, AND UNIFORM COMPLAINT PROCEDURES

Charter School shall designate at least one employee to coordinate its efforts to comply with and carry out its responsibilities under Title IX of the Education Amendments of 1972 (Title IX) and section 504 of the Rehabilitation Act of 1973 ("Section 504"), including any investigation of any complaint filed with Charter School alleging its noncompliance with these laws or alleging any actions which would be prohibited by these laws. Charter School shall notify all of its students and employees of the name, office address, and telephone number of the designated employee or employees.

Charter School shall adopt and publish complaint procedures providing for prompt and equitable resolution of student and employee complaints alleging any action that would be prohibited by Title IX or Section 504.

Charter School shall adopt and implement specific and continuing procedures for notifying applicants for admission and employment, students and parents of elementary and secondary school students, employees, sources of referral of applicants for admission and employment, and all unions or professional organizations holding collective bargaining or professional agreements with Charter School, that Charter School does not discriminate on the basis of sex or mental or physical disability in the educational programs or activities which it operates, and that it is required by Title IX and Section 504 not to discriminate on any such basis.

Charter School shall establish and provide a uniform complaint procedure in accordance with applicable federal and state laws and regulations, including but not limited to all applicable requirements of California Code of Regulations, title 5, section 4600 et seq.

Charter School shall adhere to all applicable federal and state laws and regulations regarding pupil fees, including Education Code sections 49010 - 49013, and extend its uniform complaint procedure to complaints filed pursuant to Education Code section 49013.

Charter School shall extend its uniform complaint procedure to complaints filed pursuant to the Local Control Funding Formula legislation provisions set forth in Education Code section 52075.

RESPONDING TO INQUIRIES

Charter School, including its nonprofit corporation shall promptly respond to all reasonable inquiries, including but not limited to inquiries regarding financial records from the District, and shall cooperate with the District regarding any inquiries. Charter School acknowledges that Charter School, including but not limited to its nonprofit corporation, is subject to audit by LAUSD, including, without limitation, audit by the District Office of the Inspector General. Charter School shall provide the District with current, complete, and accurate contact information for Charter School, Charter School administrators, and Board members.

If an allegation or other evidence of waste, fraud, abuse, or other material violation of law related to Charter School's operations, or breach of the Charter, is received or discovered by the District, Charter School, including but not limited to its nonprofit corporation, employees, and representatives, shall cooperate with any resulting inquiry and/or investigation undertaken by the District and/or the Office of the Inspector General Investigations Unit.

Charter School acknowledges and agrees that persons and entities that directly exercise control over the expenditure of Charter School's public funds shall be subject to all necessary and appropriate District charter school oversight.

NOTIFICATION OF THE DISTRICT

Charter School shall notify the Charter Schools Division (CSD) in writing of any citations or notices of workplace hazards, investigations by outside governmental regulatory or investigative agencies, lawsuits, changes in corporate or legal status (e.g., loss of IRS 501(c)(3) status), or other formal complaints or notices, within one week of receipt of such notices by Charter School. Unless prohibited by law, Charter School shall notify the CSD in writing of any internal investigations within one week of commencing investigation. Charter School shall notify the CSD within 24 hours of any dire emergency or serious threat to the health and safety of students or staff.

STUDENT RECORDS

Upon receipt of a student records request from a receiving school/school district, Charter School shall transfer a copy of the student's complete cumulative record within ten (10) school days in accordance with Education Code section 49068 and all student confidentiality and privacy laws including compliance with the Family Educational Rights and Privacy Act (FERPA). Charter School shall comply with the requirements of California Code of Regulations, title 5, section 3024, regarding the transfer of student special education records. In the event Charter School closes, Charter School shall comply with the student records transfer provisions in Element 15. Charter School shall comply with the requirements of Education Code section 49060 et seq., which include provisions regarding rights to access student records and transfer of records for youth in foster care.

PARENT ENGAGEMENT

Charter School shall not require a parent or legal guardian of a prospective or enrolled student to perform volunteer service hours, or make payment of fees or other monies, goods, or services in lieu of performing volunteer service, as a condition of his/her child's admission, continued

enrollment, attendance, or participation in the school's educational activities, or otherwise discriminate against a student in any manner because his/her parent cannot, has not, or will not provide volunteer service to Charter School.

The Charter School may encourage parental involvement, but shall notify the parents and guardians of applicant students and currently enrolled students that parental involvement is not a requirement for acceptance to, or continued enrollment at, the Charter School. (Ed. Code § 47605(n).)

FEDERAL PROGRAM COMPLIANCE

As a recipient of federal funds, Charter School has agreed to meet all applicable programmatic, fiscal and other regulatory requirements of the Elementary and Secondary Education Act (ESEA, also known as Every Student Succeeds Act (ESSA)) and other applicable federal programs. Charter School understands that it is a local educational agency (LEA) for purposes of federal compliance and reporting purposes. Charter School agrees that it will keep and make available to the District any documentation necessary to demonstrate compliance with the requirements of ESEA and other applicable federal programs. Charter School also acknowledges that, as part of its oversight of Charter School, the District may conduct program review for federal as well as state compliance.

Element 5 – Employee Qualifications

“The qualifications to be met by individuals to be employed by the charter school.” (Ed. Code § 47605(c)(5)(E).)

EQUAL EMPLOYMENT OPPORTUNITY

Charter School acknowledges and agrees that all persons are entitled to equal employment opportunity. Charter School shall not discriminate against applicants or employees on the basis of race, color, religion, sex, gender, gender expression, gender identity, sexual orientation, pregnancy, national origin, ancestry, citizenship, age, marital status, physical disability, mental disability, medical condition, genetic information, military and veteran status, or any other characteristic protected by California or federal law. Equal employment opportunity shall be extended to all aspects of the employer-employee relationship, including but not limited to recruitment, selection, hiring, upgrading, training, promotion, transfer, discipline, layoff, recall, and dismissal from employment.

ESEA/ESSA AND CREDENTIALING REQUIREMENTS

Charter School shall adhere to all requirements of the Elementary and Secondary Education Act (ESEA, also known as Every Student Succeeds Act (ESSA)) that are applicable to teachers and paraprofessional employees. Charter School shall ensure that all teachers are appropriately assigned and fully credentialed in accordance with applicable state requirements for certificated employment, including but not limited to the provisions of Education Code section 47605(l). Charter School shall maintain current copies of all teacher credentials and make them readily available for inspection.

Element 6 – Health and Safety Procedures

“The procedures that the charter school will follow to ensure the health and safety of pupils and staff. These procedures shall require all of the following:

- (i) That each employee of the charter school furnish it with a criminal record summary as described in Section 44237*
- (ii) The development of a school safety plan, which shall include the safety topics listed in subparagraphs (A) to (J), inclusive, of paragraph (2) of subdivision (a) of Section 32282.*
- (iii) That the school safety plan be reviewed and updated by March 1 of every year by the charter school.” (Ed. Code § 47605(c)(5)(F).)*

HEALTH, SAFETY AND EMERGENCY PREPAREDNESS PLAN

Charter School shall comply with all applicable federal, state, and local requirements related to school and student health, safety, and emergency preparedness.

If Charter School occupies and/or operates on a District facility, Charter School shall comply with all District health, safety, and emergency procedures and requirements applicable to District facilities and related operations, and shall be subject to inspection by the District’s Facilities Services Division, Office of Environmental Health and Safety, and other District offices in the same manner as other LAUSD campuses.

Charter School shall adopt, implement, and maintain at all times a current, comprehensive, and site-specific Health, Safety, and Emergency Preparedness Plan (“Plan”), which must include but is not limited to provisions for building and site emergency evacuation, the acquisition and maintenance of adequate onsite emergency supplies. The Plan must include Charter School’s requirements and procedures for protecting student health and safety during off-campus school-sponsored activities, including but not limited to field trips and transportation. Charter School shall ensure that all staff members receive annual training on Charter School’s health, safety, and emergency procedures, including but not limited to training on bloodborne pathogens, and shall maintain a calendar for, and conduct, emergency response drills for students and staff.

Charter School shall periodically review, and update and/or modify as necessary, its Health, Safety, and Emergency Preparedness Plan, and keep it readily available for on-site use. Charter School shall provide a copy of the Health, Safety, and Emergency Preparedness Plan for review upon CSD request.

Comprehensive School Safety Plan

The Charter School shall adopt a Comprehensive School Safety Plan, to be reviewed and updated by March 1 of every year, which shall include, but not be limited to: (1) an assessment of the current status of school crime committed on Charter School facilities and at Charter School-related functions; and (2) identifying appropriate strategies and programs that will provide or maintain a high level of school safety and address the Charter School’s procedures for complying with applicable laws related to school safety, which shall include the development of all of the following pursuant to Education Code section 32282(a)(2)(A)-(J):

- Child abuse reporting procedures
- Routine and emergency disaster procedures
- Policies for students who committed an act under Section 48915 and other Charter School-designated serious acts leading to suspension, expulsion, or mandatory expulsion recommendations
- Procedures to notify teachers of dangerous students pursuant to Education Code section 49079
- A discrimination and harassment policy consistent with Education Code section 200
- Provisions of any schoolwide dress code that prohibits students from wearing “gang-related apparel” if applicable
- Procedures for safe ingress and egress of pupils, parents, and employees to and from the Charter School
- A safe and orderly environment conducive to learning at the Charter School
- The rules and procedures on Charter School discipline
- Procedures for conducting tactical responses to criminal incidents, including procedures related to individuals with guns on Charter School campus(es) and at school-related functions.

CHILD ABUSE AND NEGLECT MANDATED REPORTER TRAINING

Charter School shall provide all employees, and other persons working on behalf of Charter School who are mandated reporters, with annual training on child abuse detection and reporting, which shall occur within the first six weeks of each school year, or within the first six weeks of a person’s employment if employed after the beginning of the school year, in accordance with the requirements of Education Code section 44691.

Medication in School

The Charter School will adhere to Education Code section 49423 regarding administration of medication in school. Charter School shall stock and maintain the required number and type of emergency epinephrine auto-injectors onsite and provide training to employee volunteers in the storage and use of the epinephrine auto-injector as required by Education Code section 49414 and section 4119.2 of the Business and Professions Code, as they may be amended from time to time.

ATHLETIC PROGRAMS

Charter School shall comply with the requirements of Education Code section 49475, with respect to any athletic program (as defined in Education Code section 49475) offered by or on behalf of Charter School.

If the Charter School offers an interscholastic athletic program, it shall develop and post a written emergency action plan that describes procedures to be followed in the event of sudden cardiac arrest and other medical emergencies, acquire and regularly test and maintain at least one automated external defibrillator (AED) for the Charter School, and make the AED available at on-campus athletic activities or events according to the requirements of Education Code sections 35179.4 and 35179.6.

FAMILY EDUCATIONAL RIGHTS AND PRIVACY ACT (FERPA)

Charter School, including its employees, officers, and representatives, shall comply with the Family Educational Rights and Privacy Act (FERPA) and Education Code section 49060 et seq. at all times.

CRIMINAL BACKGROUND CLEARANCES AND FINGERPRINTING

Charter School shall comply with all requirements of Education Code sections 44237 and 45125.1. Charter School shall designate and maintain at all times at least one Custodian of Records duly authorized by the California Department of Justice.

Charter School shall maintain on file and available for inspection evidence that (1) Charter School has performed criminal background checks and cleared for employment all employees prior to employment; (2) Charter School has obtained certification from each of its contracting entities/independent contractors that the entity/contractor has conducted required criminal background clearances for its employees prior to provision of schoolsite services and/or any contact with students, and has requested subsequent arrest notification service; and (3) Charter School has performed criminal background checks and cleared for service all volunteers not directly supervised by staff and who may have contact with students. Charter School shall also ensure that it requests and receives subsequent arrest notifications from the California Department of Justice for all employees and volunteers not directly supervised by staff. Upon request, Charter School shall provide a copy of Department of Justice confirmation of Custodian of Records status for each Custodian of Records. Charter School, including its administrators and officers, shall comply with the requirements of Education Code section 44030.5.

All teachers in Charter School shall obtain a certificate of clearance and satisfy the requirements for professional fitness pursuant to Education Code sections 44339, 44340, and 44341.

IMMUNIZATION AND HEALTH SCREENING REQUIREMENTS

Charter School shall require all employees, and any volunteer or vendor/contracting entity employee who may have frequent or prolonged contact with students, to undergo a risk assessment and/or be examined and determined to be free of active tuberculosis (TB) within the period of 60 days prior to employment/service, or otherwise meet the requirements of Education Code section 49406. Charter School shall maintain TB clearance records and certificates on file.

Charter School shall comply with all federal and state legal requirements related to student immunization, health examination, and health screening, including but not limited to screening for vision, hearing, and scoliosis pursuant to Education Code section 49450 et seq, to the same extent as would be required if the students were attending a non-charter public school. Charter School shall maintain student immunization, health examination, and health screening records on file.

SAFE PLACE TO LEARN ACT

Charter School shall comply with all applicable requirements of the Safe Place to Learn Act, Education Code section 234 et seq.

SUICIDE PREVENTION POLICY

If Charter School serves students in any grades Transitional Kindergarten/Kindergarten through 12, Charter School shall comply with the requirements of AB 2246 (2016) and AB 1767, codified in Education Code section 215, including but not limited to the requirement that the school's pupil suicide prevention policy shall be developed in consultation with school and community stakeholders, school-employed mental health professionals, and suicide prevention experts and adopted at a regular public hearing. The Charter School shall review, at a minimum every fifth year, its policy on pupil suicide prevention and, if necessary, update its policy. Charter School shall provide the CSD with a copy of its pupil suicide prevention policy for review upon request.

HUMAN TRAFFICKING PREVENTION RESOURCES

If the Charter School serves students in any grades 6-12, it shall identify and implement the most appropriate methods of informing parents/guardians of human trafficking prevention resources as required by Education Code section 49381.

FEMININE HYGIENE PRODUCTS

If the Charter School maintains any combination of classes in grades 6-12 that meets the 40% pupil poverty threshold required to operate a schoolwide program pursuant to Section 6314(a)(1)(A) of Title 20 of the United States Code, then it shall stock at least 50% of its restrooms with feminine hygiene products at all times, and shall not charge students for these products, as required by Education Code section 35292.6.

NUTRITIONALLY ADEQUATE FREE OR REDUCED-PRICE MEAL

The Charter School shall provide each needy student, as defined in Education Code section 49552, with one nutritionally adequate free or reduced-price meal, as defined in Education Code section 49553(a), during each school day.

CALIFORNIA HEALTHY YOUTH ACT

The Charter School shall teach sexual health education and human immunodeficiency virus ("HIV") prevention education to students in grades 7-12, at least once in middle school and at least once in high school, pursuant to the California Healthy Youth Act. (Ed. Code § 51930, et seq.)

BULLYING PREVENTION

Charter School shall adopt procedures for preventing acts of bullying, including cyberbullying, and shall annually make available the online training module developed by the California Department of Education pursuant to Education Code section 32283.5(a) to certificated schoolsite employees and all other schoolsite employees who have regular interaction with pupils.

LGBTQ RESOURCES TRAINING

Charter School recognizes that it is encouraged to use schoolsite and community resources developed by the State Department of Education for the support of lesbian, gay, bisexual,

transgender, queer, and questioning (LGBTQ) pupils to provide training at least once every 2 years to teachers and other certificated employees at each Charter School schoolsite that serves pupils in grades 7 to 12, to increase support for LGBTQ pupils and thereby improve overall school climate. (Ed. Code § 218.)

TRANSPORTATION SAFETY PLAN

The Charter School shall develop and maintain a transportation safety plan that includes procedures to ensure that a student is not left unattended on a school bus, student activity bus, youth bus, or child care motor vehicle and procedures and standards for designating an adult chaperone, other than the driver, to accompany students on a school activity bus. In addition, the Charter School shall ensure that each school bus, student activity bus, youth bus, or child care motor vehicle is equipped with a child safety alert system that requires the driver to either manually contact or scan the device, thereby prompting the driver to inspect the entirety of the interior of the vehicle before exiting, unless the student activity bus is exempted by law. (Ed. Code § 39831.3; Veh. Code § 28160.)

Element 7 – Means to Achieve Racial and Ethnic Balance

“The means by which the school will achieve a balance of racial and ethnic pupils, special education pupils, and English learner pupils, including redesignated fluent English proficient pupils, as defined by the evaluation rubrics in Section 52064.5, that is reflective of the general population residing within the territorial jurisdiction of the school district to which the charter petition is submitted.” (Ed. Code § 47605(c)(5)(G).)

COURT-ORDERED INTEGRATION

Charter School shall comply with all requirements of the *Crawford v. Board of Education, City of Los Angeles* court order and the LAUSD Integration Policy adopted and maintained pursuant to the Crawford court order by the District’s Student Integration Services (collectively the “Court-ordered Integration Program”). The Court-ordered Integration Program applies to all schools within or chartered through LAUSD.

Charter School has set forth below its initial plan for achieving and maintaining the LAUSD’s Racial and Ethnic Balance goal of a 70:30 or 60:40 ratio. (*Ratio represents the percentage of Predominantly Hispanic Black Asian Other (PHBAO) compared to Other White (OW)*). The written plan lists specific dates and locations of recruitment activities that Charter School will undertake in order to achieve the District’s Racial and Ethnic Balance goal. Charter School shall monitor the implementation and outcomes of the initial plan, and modify it as necessary throughout the term of the Charter to achieve the District’s goal. Upon request, Charter School shall provide the District with a copy of its current written plan.

The District receives neither average daily attendance allocations nor Court-ordered Integration Program cost reimbursements for charter school students. The District may receive the Targeted Instructional Improvement Block Grant (TIIBG) for its Court-ordered Integration Program. The District retains sole discretion over the allocation of TIIBG funding, where available, and cannot guarantee the availability of this funding.

Element 8 – Admission Policies and Procedures

“Admission policies and procedures, consistent with subdivision (e).” (Ed. Code § 47605(c)(5)(H).)

DOCUMENTATION OF ADMISSIONS AND ENROLLMENT PROCESSES

Charter School shall maintain complete and accurate records of its annual admissions and enrollment processes, including but not limited to documentation of implementation of lottery and waitlist criteria and procedures in accordance with the terms of the Charter. These records shall be made available to the District upon request.

HOMELESS AND FOSTER YOUTH

Charter School shall adhere to the provisions of the federal McKinney-Vento Homeless Assistance Act and ensure that each child of a homeless individual and each homeless youth has equal access to the same free, appropriate public education as provided to other children and youths. Charter School shall provide specific information, in its outreach materials, websites, at community meetings, open forums, and regional center meetings, that notifies parents that Charter School will enroll and provide services for all students, and provides a standard District contact number for access to additional information regarding enrollment.

Charter School shall comply with all applicable federal and state laws regarding homeless and foster youth, including but not limited to the provisions of AB 379 (2015) and Chapter 5.5 (commencing with Section 48850) of Part 27 of Division 4 of Title 2 of the Education Code, as amended from time to time. Charter School shall extend its uniform complaint procedure to complaints filed pursuant to the applicable provisions of AB 379.

NON-DISCRIMINATION

Charter School shall not require a parent/legal guardian/student to provide information regarding a student’s disability, gender, gender identity, gender expression, nationality, legal or economic status, primary language or English Learner status, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in section 422.55 of the Penal Code, including immigration status, or any other information that would violate federal or state law, prior to admission, participation in any admissions or attendance lottery, or pre-enrollment event or process, or as a condition of admission or enrollment. Charter School may request, at the time of, and as part of, conducting its lottery process, the provision of information necessary to apply specific admissions preferences set forth in this Charter.

Charter School shall not request or require submission of a student’s IEP, Section 504 Plan, or any other record or related information prior to admission, participation in any admissions or attendance lottery, or pre-enrollment event or process, or as a condition of admission or enrollment.

Charter School shall not discourage a student from enrolling or seeking to enroll in the Charter School, nor encourage a current student from disenrolling, for any reason, including, but not limited to, the student's academic performance, nationality, race, ethnicity, or sexual orientation or because the student is a student with disabilities, academically low achieving, an English learner,

neglected or delinquent, homeless, economically disadvantaged, or a foster youth. The Charter School shall not request or require a student's records to be submitted before enrollment. The Charter School shall post on its web site the California Department of Education notice of these requirements and shall provide the notice to parents/guardians or students age 18 and older when the parent/guardian or student inquiries about enrollment, before conducting an enrollment lottery, and before disenrollment of a student. (Ed. Code §§ 47605, 47605.6)

Charter School shall adopt policy that is consistent with the model policy developed by the California Attorney General addressing the Charter School's response to immigration enforcement, notify parents/guardians of their children's right to a free public education regardless of immigration status or religious beliefs, prohibit the collection of information or documents regarding the immigration status of students or their family members, and fulfill other requirements of Education Code section 234.7.

PREGNANT AND PARENTING STUDENT ACCOMMODATIONS

Charter School shall provide specified accommodations to pregnant and parenting students, including, but not limited to, the provision of parental leave and reasonable accommodations on campus to a lactating student to express breast milk, breastfeed an infant child, or address other needs related to breastfeeding. The Charter School shall notify pregnant and parenting students and parents/guardians of the rights and options available to pregnant and parenting students. (Ed. Code §§ 222, 222.5, 46015.)

SEXUAL HARASSMENT POLICY NOTICE

The Charter School shall create a poster that notifies students of the applicable policy on sexual harassment in accordance with Education Code section 231.6, and shall prominently and conspicuously display the poster in each bathroom and locker room at each schoolsite and in public areas at each schoolsite.

If the charter school offers competitive athletics, annually post on the school's web site or on the web site of the charter operator the total enrollment of the school classified by gender, the number of students who participate in competitive athletics classified by gender, and the number of boys' and girls' teams classified by sport and by competition level. If Charter School operates multiple school sites, this information shall be disaggregated by school site. (Ed. Code § 221.9.)

Element 9 – Annual Financial Audits

“The manner in which annual, independent financial audits shall be conducted, which shall employ generally accepted accounting principles, and the manner in which audit exceptions and deficiencies shall be resolved to the satisfaction of the chartering authority.” (Ed. Code § 47605(c)(5)(I).)

Charter School shall provide for an annual audit that shall be conducted in compliance with applicable state and federal laws, including but not limited to the requirements of Education Code sections 47605(b)(c)(I) and 41020 as they may be amended from time to time. Charter School shall ensure compliance with the requirements of section 41020(f)(2), which makes it unlawful, absent an Education Audits Appeal Panel waiver, for a public accounting firm to provide audit services

to a local educational agency if the lead audit partner, or coordinating audit partner, having primary responsibility for the audit, or the audit partner responsible for reviewing the audit, has performed audit services for that local educational agency in each of the six previous years.

The following reports will be submitted to LAUSD, in the required format and within timelines to be specified by LAUSD, each year:

- a. Provisional Budget – Spring prior to operating fiscal year
- b. Final Budget – July of the budget fiscal year
- c. First Interim Projections – November of operating fiscal year
- d. Second Interim Projections – February of operating fiscal year
- e. Unaudited Actuals – July following the end of the fiscal year
- f. Audited Actuals – December 15 following the end of the fiscal year
- g. Classification Report – monthly according to Charter School’s Calendar
- h. Statistical Report – monthly according to Charter School’s Calendar of Reports

In addition:

- P1, first week of January
- P2, first week of April
- i. Instructional Calendar – annually five weeks prior to first day of instruction
- j. Other reports as requested by the District

Element 10 – Suspension and Expulsion Procedures

“The procedures by which pupils can be suspended or expelled from the charter school for disciplinary reasons or otherwise involuntarily removed from the charter school for any reason. These procedures, at a minimum, shall include an explanation of how the charter school will comply with federal and state constitutional procedural and substantive due process requirements that is consistent with all of the following:

(i) For suspensions of fewer than 10 days, provide oral or written notice of the charges against the pupil and, if the pupil denies the charges, an explanation of the evidence that supports the charges and an opportunity for the pupil to present the pupil’s side of the story.

(ii) For suspensions of 10 days or more and all other expulsions for disciplinary reasons, both of the following:

(I) Provide timely, written notice of the charges against the pupil and an explanation of the pupil’s basic rights.

(II) Provide a hearing adjudicated by a neutral officer within a reasonable number of days at which the pupil has a fair opportunity to present testimony, evidence, and witnesses and confront and cross-examine adverse witnesses, and at which the pupil has the right to bring legal counsel or an advocate.

(iii) Contain a clear statement that no pupil shall be involuntarily removed by the charter school for any reason unless the parent or guardian of the pupil has been provided written notice of intent to remove the pupil no less than five schooldays before the effective date of the action. The written notice shall be in the native language of the pupil or the pupil’s parent or guardian or, if the pupil is a foster child or youth or a homeless child or youth, the pupil’s educational rights holder, and shall inform the pupil, the pupil’s parent or guardian, or the pupil’s educational rights holder of the right to initiate the procedures specified in clause (ii) before the effective date of the action. If the pupil’s parent, guardian, or educational rights holder initiates the procedures specified in clause (ii), the pupil shall remain enrolled and shall not be removed until the charter school issues a final decision. For purposes of this clause, “involuntarily

removed” includes disenrolled, dismissed, transferred, or terminated, but does not include suspensions specified in clauses (i) and (ii).” (Ed. Code § 47605(c)(5)(J).)

GENERAL PROVISIONS

Charter School shall provide due process for all students, including adequate and timely notice to parents/guardians and students of the grounds for all suspension and expulsion recommendations and decisions and their due process rights regarding suspension and expulsion, including rights of appeal.

Charter School shall ensure that its policies and procedures regarding suspension and expulsion will be periodically reviewed, and modified as necessary, in order to conform to changes in state law.

Charter School shall ensure that its staff is knowledgeable about and complies with the District’s Discipline Foundation Policy and/or current equivalent policy.. Charter School shall comply with the terms of the School Discipline Policy and School Climate Bill of Rights resolution adopted by the LAUSD Board of Education on May 6, 2013.

Charter School shall be responsible for the appropriate interim placement of students during and pending the completion of Charter School’s student expulsion process and shall facilitate the post-expulsion placement of expelled students.

Charter School shall document and implement the alternatives to suspension and expulsion that Charter School utilizes in response to attendance-related concerns, e.g. truancy or excessive tardiness.

No student shall be involuntarily removed by the Charter School for any reason unless the parent or guardian of the student has been provided written notice of intent to remove the student no less than five schooldays before the effective date of the action. The written notice shall be in the native language of the student or the student’s parent or guardian or, if the student is a foster child or youth or a homeless child or youth, the student’s educational rights holder, and shall inform him or her of the basis for which the pupil is being involuntarily removed and his or her right to request a hearing to challenge the involuntary removal. If a parent, guardian, or educational rights holder requests a hearing, the Charter School shall utilize the same hearing procedures specified below for expulsions, before the effective date of the action to involuntarily remove the student. If the student’s parent, guardian, or educational rights holder requests a hearing, the student shall remain enrolled and shall not be removed until the Charter School issues a final decision. As used herein, “involuntarily removed” includes disenrolled, dismissed, transferred, or terminated, but does not include removals for misconduct which may be grounds for suspension or expulsion as enumerated in this section.

HOMEWORK TO SUSPENDED STUDENTS

For any student who has been suspended from school for two or more schooldays, Charter School shall provide student with the homework the student would otherwise have been assigned if requested by the student or student’s parent/guardian. If a homework assignment is requested and turned in to the student's teacher either upon the student’s return to school from suspension or

within the timeframe originally prescribed by the teacher, whichever is later, but it is not graded before the end of the academic term, then that assignment shall not be included in the calculation of the pupil's overall grade in the class. (Ed. Code § 48913.5)

STUDENTS WITH DISABILITIES

Charter School shall establish and implement policies and procedures to ensure full compliance with federal and state laws and regulations regarding the discipline of students with disabilities. If a student is recommended for expulsion and the student receives or is eligible for special education, pending the completion of the expulsion process, Charter School shall identify and provide special education programs and services at an appropriate interim educational placement determined in coordination with the LAUSD Division of Special Education.

In the case of a student who has an Individualized Education Program ("IEP"), or a student who has a Section 504 Plan, Charter School shall ensure that it follows correct disciplinary procedures to comply with the mandates of state and federal laws, including IDEA and section 504 of the Rehabilitation Plan of 1973. As set forth in the MOU regarding special education between the District and Charter School, an IEP team will meet to conduct a manifestation determination and to discuss alternative placement utilizing the District's Special Education Policies and Procedures Manual. Prior to recommending expulsion for a student with a Section 504 Plan, Charter School's administrator will convene a Link Determination meeting to ask the following two questions:

- A. Was the misconduct caused by, or directly and substantially related to the student's disability?
- B. Was the misconduct a direct result of the Charter School's failure to implement Section 504?

NOTIFICATION OF THE DISTRICT

Upon expelling any student, Charter School shall notify the Charter Schools Division by submitting an expulsion packet to the CSD immediately or as soon as practicable, which shall contain:

- Completed "Notification of Charter School Expulsion" [form available from the CSD website or office], including attachments as required on the form
- Documentation of the expulsion proceeding, including statement of specific facts supporting the expulsion and documentation that Charter School's policies and procedures were followed
- Copy of parental notice of expulsion hearing
- Copy of expulsion notice provided to parent stating reason for expulsion, term of expulsion, rehabilitation plan, reinstatement notice with eligibility date and instructions for providing proof of student's compliance for reinstatement, appeal process, and options for enrollment
- If the student is eligible for Special Education, documentation related to expulsion in compliance with IDEA including the Expulsion Analysis page of the pre-expulsion IEP
- If the student is eligible for Section 504 accommodations, documentation that Charter School conducted a Link Determination meeting to address two questions:
 - A. Was the misconduct caused by, or directly and substantially related to the student's disability?

- B. Was the misconduct a direct result of Charter School's failure to implement Section 504 Plan?

Notwithstanding and apart from the documentation sent to the Charter Schools Division as indicated above, if the student is a resident of a school district other than LAUSD, Charter School must notify the superintendent of the student's district of residence within 30 days of the expulsion. Additionally, upon request of the receiving school district, Charter School shall forward student records no later than 10 school days from the date of the request as stated in Education Code section 49068 (a) and (b).

OUTCOME DATA

Charter School shall gather and maintain all data related to placement, tracking, and monitoring of student suspensions, expulsions, involuntary removals, and reinstatements, and make such outcome data readily available to the District upon request.

REHABILITATION PLANS

Pupils who are expelled from Charter School shall be given a rehabilitation plan upon expulsion as developed by Charter School's governing board at the time of the expulsion order, which may include, but is not limited to, periodic review as well as assessment at the time of review for readmission. Terms of expulsion should be reasonable and fair with the weight of the expelling offense taken into consideration when determining the length of expulsion. Therefore, the rehabilitation plan should include a date not later than one (1) year from the date of expulsion when the pupil may apply to Charter School for readmission. Charter School shall inform parents in writing of its processes for reinstatement and applying for expungement of the expulsion record.

READMISSION

Charter School's governing board shall adopt rules establishing a procedure for the filing and processing of requests for readmission and the process for the required review of all expelled pupils for readmission. Upon completion of the readmission process, Charter School's governing board shall readmit the pupil, unless Charter School's governing board makes a finding that the pupil has not met the conditions of the rehabilitation plan or continues to pose a danger to campus safety. A description of the procedure shall be made available to the pupil and the pupil's parent or guardian at the time the expulsion order is entered and the decision of the governing board, including any related findings, must be provided to the pupil and the pupil's parent/guardian within a reasonable time.

REINSTATEMENT

Charter School's governing board shall adopt rules establishing a procedure for processing reinstatements, including the review of documents regarding the rehabilitation plan. Charter School is responsible for reinstating the student upon the conclusion of the expulsion period in a timely manner.

GUN-FREE SCHOOLS ACT

Charter School shall comply with the federal Gun-Free Schools Act.

Element 11 – Employee Retirement Systems

“The manner by which staff members of the charter schools will be covered by the State Teachers’ Retirement System, the Public Employees’ Retirement System, or federal social security.” (Ed. Code § 47605(c)(5)(K).)

Charter School shall comply in a timely manner with all applicable federal and state laws and regulations, as they may change from time to time, including but not limited to Internal Revenue Code section 414(d) and related regulations, governing Charter School’s participation in, and/or coverage of its staff members by, the State Teachers’ Retirement System (CalSTRS), the Public Employees’ Retirement System (CalPERS), and/or federal social security.

If Charter School participates in, or otherwise covers its staff members by enrolling or continuing their enrollment in, a “government plan” governed by section 414(d) (e.g., CalPERS), upon dissolution or final liquidation of Charter School, and/or its nonprofit public benefit corporation, notwithstanding any provision in Element 15 to the contrary, Charter School shall distribute its net assets in accordance with section 414(d), related regulations, and the government plan’s requirements.

If Charter School participates in CalSTRS and/or CalPERS, Charter School shall continue such participation for the duration of Charter School’s existence under the same CDS code, if mandated by applicable legal and retirement plan requirements.

Element 12 – Public School Attendance Alternatives

“The public school attendance alternatives for pupils residing within the school district who choose not to attend charter schools.” (Ed. Code § 47605(c)(5)(L).)

Pupils of Charter School do not have or gain any right to admission in a particular school of any school district, or program of any school district, as a consequence of applying to or enrolling in Charter School, except to the extent that such a right is extended by the school district.

A pupil who chooses not to attend Charter School may attend a public school within the pupil’s school district of residence in accordance with applicable law and that school district’s policies and procedures. The pupil alternatively may seek to enroll in another charter school in accordance with applicable law and the terms of the school’s charter. If LAUSD is the pupil’s school district of residence, an eligible pupil may pursue an inter-district transfer, if available, in accordance with the admission, enrollment, and transfer policies and procedures of the District, as they may change from time to time.

Element 13 – Rights of District Employees

“The rights of an employee of the school district upon leaving the employment of the school district to work in a charter school, and of any rights of return to the school district after employment at a charter school.” (Ed. Code § 47605(c)(5)(M).)

Employees of the District who choose to leave the employment of the District to work at Charter School shall have no automatic rights of return to the District after employment at Charter School unless specifically granted by the District through a leave of absence or other agreement or policy of the District as aligned with the collective bargaining agreements of the District. Leave and return rights for District union-represented employees and former employees who accept employment with Charter School will be administered in accordance with applicable collective bargaining agreements and any applicable judicial rulings.

Element 14 – Mandatory Dispute Resolution

“The procedures to be followed by the charter school and the entity granting the charter to resolve disputes relating to provisions of the charter.” (Ed. Code § 47605(c)(5)(N).)

GENERAL PROVISIONS

Any claim, controversy or dispute between the District and Charter School arising out of, or relating to, this Charter, except for any claim, controversy or dispute related to the authorization, non-renewal, revision, and/or revocation of this Charter, (“Dispute”) shall be resolved pursuant to the terms of this Element 14.

Notwithstanding any other provision of law, each party shall bear and be solely responsible for all of its own attorneys’ fees, costs and expenses associated with any Dispute, including, but not limited to, any written/oral communication, meeting, Issues Conference, mediation, arbitration, administrative and/or civil action (including all levels of appeal), and no party shall be ordered to pay, or be awarded, any other party’s attorneys’ fees, costs or expenses in connection therewith, regardless of who may be deemed the prevailing party. Any fees, costs and expenses charged by a mediator or arbitrator (including all associated administration fees, costs and expenses) shall be shared equally by the parties regardless of the outcome or award. To that effect, any order or award of attorneys’ fees, costs and/or expenses, or mediator’s or arbitrator’s fees, costs or expenses (including any associated administration fees, costs and expenses), issued by a mediator, arbitrator, judicial officer (including all levels of appeal) or jury in any Dispute shall be deemed invalid as a matter of law and unenforceable by one party against the other party.

PROPOSITION 39 DISPUTES

Any Dispute related to or arising out of Education Code section 47614 and/or its implementing regulations set forth in California Code of Regulations, title 5, section 11969 et seq. (“Proposition 39”), shall be resolved in accordance with the procedures set forth below:

- 1) Any Dispute shall be communicated in writing (“Written Notification”). The Written Notification must identify the nature of the Dispute and all supporting facts. The Written Notification shall be tendered to the other party by personal delivery, by facsimile or e-mail,

or by certified mail. The Written Notification shall be deemed received (a) if personally delivered, upon date of delivery to the address of the person to receive such notice if delivered by 5:00 p.m., or otherwise on the business day following personal delivery; (b) if by facsimile or e-mail, upon electronic confirmation of receipt; or (c) if by certified mail, two (2) business days after deposit in the U.S. Mail.

Unless directed otherwise, all Written Notifications to the District and Charter School shall be addressed respectively as follows:

Director
Charter Schools Division
Los Angeles Unified School District
333 South Beaudry Avenue, 20th Floor
Los Angeles, California 90017

Director/Principal
[Charter School Name]
[Charter School Address]

- 2) A written response (“Written Response”) shall be tendered to the other party within fifteen (15) business days from the date of receipt of the Written Notification or other date as determined by mutual agreement of the parties. The Written Response shall be tendered to the other party by personal delivery, by facsimile or e-mail, or by certified mail. The Written Response shall be deemed received (a) if personally delivered, upon date of delivery to the address of the person to receive such communication if delivered by 5:00 p.m., or otherwise on the business day following personal delivery; (b) if by facsimile or e-mail, upon electronic confirmation of receipt; or (c) if by certified mail, two (2) business days after deposit in the U.S. Mail.
- 3) If the Dispute has not been resolved by mutual agreement from the Written Response, the parties agree to schedule a conference to discuss the Dispute identified in the Written Notice (“Issue Conference”). The Issue Conference shall take place within fifteen (15) business days from the date on which the Written Response is received by the other party or other date as determined by mutual agreement of the parties.
- 4) If the Dispute has not been resolved by mutual agreement at the Issue Conference, either party may then request that the Dispute be resolved by mediation. Within fifteen (15) business days of the date of the request for mediation or other date as determined by mutual agreement of the parties, the parties shall mutually agree upon the selection of a mediator. If the parties are unable to mutually agree upon the selection of a mediator, the mediator shall be selected from a list of mediators prepared and provided by the American Arbitration Association. Mediation proceedings shall commence within thirty (30) business days of the date of the request for mediation or other date as determined by mutual agreement of the parties, and conclude within forty (40) business days of the date of the request for mediation or other date as determined by mutual agreement of the parties. Unless the parties mutually agree otherwise, mediation proceedings shall be administered in accordance with the commercial mediation procedures of the American Arbitration Association.

- 5) If the mediation is not successful, either party may then initiate a civil action. Venue for any civil action between the parties shall be the Los Angeles County Superior Court.

NON-PROPOSITION 39 DISPUTES

Any Dispute not related to or arising out of Proposition 39 shall be resolved in accordance with the procedures set forth below:

- 1) Any Dispute shall be communicated in writing (“Written Notification”). The Written Notification must identify the nature of the Dispute and any supporting facts. The Written Notification shall be tendered to the other party by personal delivery, by facsimile, or by certified mail. The Written Notification shall be deemed received (a) if personally delivered, upon date of delivery to the address of the person to receive such notice if delivered by 5:00 p.m., or otherwise on the business day following personal delivery; (b) if by facsimile, upon electronic confirmation of receipt; or (c) if by mail, two (2) business days after deposit in the U.S. Mail.

Unless directed otherwise all Written Notifications to the District and Charter School shall be addressed respectively as follows:

Director
Charter Schools Division
Los Angeles Unified School District
333 South Beaudry Avenue, 20th Floor
Los Angeles, California 90017

Director/Principal
[Charter School]
[Charter School Address]

- 2) A written response (“Written Response”) shall be tendered to the other party within twenty (20) business days from the date of receipt of the Written Notification or other date as determined by mutual agreement of the parties. The Written Response shall be tendered to the other party by personal delivery, by facsimile or e-mail, or by certified mail. The Written Response shall be deemed received (a) if personally delivered, upon date of delivery to the address of the person to receive such communication if delivered by 5:00 p.m., or otherwise on the business day following personal delivery; (b) if by facsimile or e-mail, upon electronic confirmation of receipt; or (c) if by certified mail, two (2) business days after deposit in the U.S. Mail.
- 3) If the Dispute has not been otherwise resolved by mutual agreement, the parties agree to schedule a conference to discuss the Dispute identified in the Written Notice (“Issue Conference”). The Issue Conference shall take place within fifteen (15) business days from the date from the date on which the Written Response is received by the other party or other date as determined by mutual agreement of the parties.
- 4) If the Dispute has not been resolved by mutual agreement at the Issue Conference, either party may then request that the Dispute be resolved by mediation. Within fifteen (15)

business days of the date of the request for mediation or other date as determined by mutual agreement of the parties, the parties shall mutually agree upon the selection of a mediator. If the parties are unable to mutually agree upon the selection of a mediator, the mediator shall be selected from a list of mediators prepared and provided by the American Arbitration Association. Mediation proceedings shall commence within thirty (30) business days of the date of the request for mediation or other date as determined by mutual agreement of the parties. Unless the parties mutually agree otherwise, mediation proceedings shall be administered in accordance with the commercial mediation procedures of the American Arbitration Association.

- 5) If the mediation is not successful, then the parties agree to resolve the Dispute by binding arbitration conducted by a single arbitrator. Unless the parties mutually agree otherwise, arbitration proceedings shall be administered in accordance with the commercial arbitration rules of the American Arbitration Association. The arbitrator must be an active member of the State Bar of California or a retired judge of the state or federal judiciary of California.

Element 15 – Charter School Closure Procedures

“The procedures to be used if the charter school closes. The procedures shall ensure a final audit of the charter school to determine the disposition of all assets and liabilities of the charter school, including plans for disposing of any net assets and for the maintenance and transfer of pupil records.” (Ed. Code § 47605(c)(5)(O).)

REVOCATION OF THE CHARTER

The District may revoke the Charter pursuant to the provisions set forth in the Charter Schools Act of 1992, as they may be amended from time to time. The District may revoke the Charter of Charter School if the District finds, through a showing of substantial evidence, that Charter School did any of the following:

- Charter School committed a material violation of any of the conditions, standards, or procedures set forth in the Charter.
- Charter School failed to meet or pursue any of the pupil outcomes identified in the Charter.
- Charter School failed to meet generally accepted accounting principles, or engaged in fiscal mismanagement.
- Charter School violated any provision of law.

Prior to revocation, and in accordance with Education Code section 47607(g) and state regulations, the LAUSD Board of Education will notify Charter School in writing of the specific violation, and give Charter School a reasonable opportunity to cure the violation, unless the LAUSD Board of Education determines, in writing, that the violation constitutes a severe and imminent threat to the health or safety of the pupils. Revocation proceedings are not subject to the dispute resolution provisions set forth in this Charter.

Pursuant to Education Code section 47607.3, a charter school identified for needing assistance and provided advice and assistance from the California Collaborative for Educational Excellence based on failure to satisfy state evaluation rubrics may be subject to revocation.

CLOSURE ACTION

The decision to close Charter School, by the governing board of Charter School must be documented in a “Closure Action”. A Closure Action shall be deemed to have been automatically taken when any of the following occur: the Charter is revoked (subject to the provisions of Education Code section 47607(f)) or non-renewed by the LAUSD Board of Education and Charter School has exhausted its revocation or non-renewal administrative appeal rights pursuant to Education Code sections 47605(k) and 47607(j), or its administrative appeal rights have lapsed, or the charter school voluntarily closes at any stage of the administrative appeal process; the governing board of Charter School votes to close Charter School; or the Charter lapses.

CLOSURE PROCEDURES

The procedures for charter school closure set forth below are guided by Education Code sections 47604.32, 47605, and 47607 as well as California Code of Regulations, title 5, sections 11962 and 11962.1, and are based on “Charter Schools Closure - Requirements and Recommendations” posted on the California Department of Education website. All references to “Charter School” apply to Charter School, including its nonprofit corporation and governing board.

Designation of Responsible Person(s) and Funding of Closure

Prior to or at the time of the taking of a Closure Action by either the governing board of Charter School or the LAUSD Board of Education, the governing board of Charter School shall designate a person or persons responsible for conducting and overseeing all closure-related procedures and activities, and allocate sufficient funding for, or otherwise determine how Charter School will fund, these activities.

Notification of Closure Action

Upon the taking of a Closure Action, Charter School shall send written notice of its closure to:

1. The LAUSD Charter Schools Division (CSD). Charter School shall provide the CSD with written notice of (1) the person(s) designated to be responsible for conducting and overseeing all closure activities, and (2) the source, location, and management of the funding for such activities. If the Closure Action is an act of Charter School, Charter School shall provide the CSD with a copy of the governing board resolution or minutes that documents its Closure Action.
2. Parents/guardians of all students, and all majority age and emancipated minor students, currently enrolled in Charter School within 72 hours of the Closure Action. Charter School shall simultaneously provide a copy of the written parent notification to the CSD.
3. Los Angeles County Office of Education (LACOE). Charter School shall send written notification of the Closure Action to LACOE by registered mail within 72 hours of the

Closure Action. Charter School shall simultaneously provide a copy of this notification to the CSD.

4. The Special Education Local Plan Area (SELPA) in which Charter School participates. Charter School shall send written notification of the Closure Action to the SELPA in which Charter School participates by registered mail within 72 hours of the Closure Action. Charter School shall simultaneously provide a copy of this notification to the CSD.
5. The retirement systems in which Charter School's employees participate. Within fourteen (14) calendar days of the Closure Action, Charter School shall notify, as applicable, the State Teachers Retirement System (STRS), Public Employees Retirement System (PERS), the Social Security Administration, and the Los Angeles County Office of Education of the Closure Action, and follow their respective procedures for dissolving contracts and reporting. Charter School shall provide a copy of these notifications and correspondence to the CSD.
6. The California Department of Education (CDE). Charter School shall send written notification of the Closure Action to the CDE by registered mail within 72 hours of the Closure Action. Charter School shall provide a copy of this notification to the CSD.
7. Any school district that may be responsible for providing education services to the former students of Charter School. Charter School shall send written notification of the Closure Action within 72 hours of the Closure Action. This notice must include a list of potentially returning students and their home schools based on student residence. Charter School shall provide a copy of these notifications, if any, to the CSD.
8. All Charter School employees and vendors within 72 hours of the Closure Action. Charter School shall simultaneously provide a copy of the written employee and vendor notification, with any attachments, to the CSD.

Notification of all the parties above, with the exception of employees and vendors, must include but is not limited to the following information:

1. The effective date of the closure of Charter School
2. The name(s) and contact information for the person(s) handling inquiries regarding the closure
3. The students' school districts of residence
4. How parents/guardians of all students, and all majority age and emancipated minor students, may obtain copies of student records and transcripts, including specific information on completed courses and credits that meet graduation requirements

In addition to the four required items above, notification of the CDE shall also include:

1. A description of the circumstances of the closure
2. The location of student and personnel records

In addition to the four required items above, notification of parents/guardians of all students, and all majority age and emancipated minor students, shall also include:

1. Information on how to enroll or transfer the student to an appropriate school
2. A certified packet of student information that includes closure notice, a copy of the student's cumulative record and other records, including but not limited to grade reports, discipline records, immunization records, completed coursework, credits that meet graduation requirements, a transcript, and state testing results
3. Information on student completion of college entrance requirements, for all high school students affected by the closure

Notification of employees and vendors shall include:

1. The effective date of the closure of Charter School
2. The name(s) and contact information for the person(s) handling inquiries regarding the closure
3. The date and manner, which shall be no later than 30 days from the effective date of the closure of Charter School, by which Charter School shall provide employees with written verification of employment

Within 30 calendar days of the effective date of closure, Charter School shall provide all employees with written verification of employment. Charter School shall send copies of all such employee verification letters to the CSD.

Records Retention and Transfer

Charter School shall comply with all applicable laws as well as District policies and procedures, as they may change from time to time, regarding the transfer and maintenance of Charter School records, including student records. These requirements include:

1. Charter School shall provide the District with all original student cumulative files and behavior records, pursuant to District policy and applicable District handbook(s) regarding cumulative records for secondary and elementary schools, for all students, both active and inactive, of Charter School. Transfer of the complete and organized original student records to the District, in accordance with District procedures applicable at the time of closure, shall occur within seven (7) calendar days of the effective date of closure.
2. Charter School's process for transferring copies of student records to receiving schools shall be in accordance with applicable law and LAUSD procedures for students moving from one school to another.
3. Charter School shall prepare and provide an electronic master list of all students to the Charter Schools Division in accordance with the District procedures applicable at the time of closure. This list shall include the student's identification number, Statewide Student Identifier (SSID), birthdate, grade, full name, address, home school/school district,

enrollment date, exit code, exit date, parent/guardian name(s), and phone number(s). If the Charter School closure occurs before the end of the school year, the list also shall indicate the name of the school to which each student is transferring, if known. This electronic master list shall be delivered to the CSD in the form of a CD or otherwise in accordance with District procedures.

4. Charter School must organize the original cumulative files for delivery to the District in two categories: active students and inactive students. Charter School will coordinate with the CSD for the delivery and/or pickup of student records.
5. Charter School must update all student records in the California Longitudinal Pupil Achievement Data System (CALPADS) prior to closing.
6. Charter School must provide to the CSD a copy of student attendance records, teacher gradebooks, and Title I records (if applicable).
7. Charter School must provide to the CSD the name, title, and contact information of the person designated to maintain all Charter School personnel records after the closure. Personnel records to be transferred to and maintained by the designee must include any and all employee records, including but not limited to, records related to performance and grievance. Charter School must provide to the CSD and the designee a list of all active and inactive employees and their periods of service. Both Charter School and the designee, individually and separately, shall inform the CSD immediately upon the transfer of Charter School's employee records to the designee.
8. Charter School shall ensure that all records are boxed and clearly labeled by classification of documents and the required duration of storage in accordance with District procedures.
9. Charter School shall provide to the responsible person(s) designated by the governing board of Charter School to conduct all closure-related activities a list of students in each grade level and, for each student, a list of classes completed and the student's district of residence.

Financial Close-Out

After receiving notification of closure, the California Department of Education (CDE) will notify Charter School and the authorizing entity of any liabilities Charter School owes the state, which may include overpayment of apportionments, unpaid revolving fund loans or grants, and/or similar liabilities. The CDE may ask the county office of education to conduct an audit of the charter school if it has reason to believe that the school received state funding for which it was not eligible.

Charter School shall ensure completion of an independent final audit within six months after the closure of Charter School that includes:

1. An accounting of all financial assets. These may include cash and accounts receivable and an inventory of property, equipment, and other items of material value.

2. An accounting of all liabilities. These may include accounts payable or reduction in apportionments due to loans, unpaid staff compensation, audit findings, or other investigations.
3. An assessment of the disposition of any restricted funds received by or due to Charter School.

This audit may serve as Charter School's annual audit if it meets all of the requirements of the annual audit.

Charter School shall pay for the financial closeout audit of Charter School. This audit will be conducted by a neutral, independent licensed CPA who will employ generally accepted accounting principles. Any liability or debt incurred by Charter School will be the responsibility of Charter School and not LAUSD. Charter School understands and acknowledges that Charter School will cover the outstanding debts or liabilities of Charter School. Any unused monies at the time of the audit will be returned to the appropriate funding source. Charter School understands and acknowledges that only unrestricted funds will be used to pay creditors. Any unused AB 602 funds will be returned to the District SELPA or the SELPA in which Charter School participates, and other categorical funds will be returned to the source of funds.

Charter School shall ensure the completion and filing of any annual reports required. These reports include but are not necessarily limited to:

1. Preliminary budgets
2. Interim financial reports
3. Second interim financial reports
4. Final unaudited reports

These reports must be submitted to the CDE and the authorizing entity in the form required. These reports should be submitted as soon as possible after the Closure Action, but no later than the required deadline for reporting for the fiscal year.

For apportionment of categorical programs, the CDE will count the prior year average daily attendance (ADA) or enrollment data of the closed Charter School with the data of the authorizing entity. This practice will occur in the first year after the closure and will continue until CDE data collection processes reflect ADA or enrollment adjustments for all affected LEAs due to the charter closure.

Disposition of Liabilities and Assets

The closeout audit must identify the disposition of all liabilities of Charter School. Charter School closure procedures must also ensure appropriate disposal, in accordance with the District Required Language provisions in Element 11 of this Charter, Charter School's governing board bylaws, fiscal procedures, and any other applicable laws and regulations, of any net assets remaining after all liabilities of Charter School have been paid or otherwise addressed. Such disposal includes, but is not limited to:

1. Charter School, at its cost and expense, shall return to the District any and all property, furniture, equipment, supplies, and other assets provided to Charter School by or on behalf of the District. The District discloses that the California Education Code sets forth the requirements for the disposition of the District's personal property and Charter School shall bear responsibility and liability for any disposition in violation of statutory requirements.
2. The return of any donated materials and property in accordance with any terms and conditions set when the donations were accepted.
3. The return of any grant and restricted categorical funds to their sources according to the terms of the grant or state and federal law.
4. The submission of final expenditure reports for any entitlement grants and the filing of Final Expenditure Reports and Final Performance Reports, as appropriate.

If Charter School is operated as or by a nonprofit corporation, and if the corporation does not have any functions other than operation of Charter School, the corporation shall be dissolved according to its bylaws.

Charter School shall retain sufficient staff, as deemed appropriate by the Charter School governing board to complete all necessary tasks and procedures required to close the school and transfer records in accordance with these closure procedures.

Charter School's governing board shall adopt a plan for wind-up of Charter School and, if necessary, the corporation, in accordance with the requirements of the Corporations Code.

Charter School shall provide LAUSD within fourteen (14) calendar days of the Closure Action with written notice of any outstanding payments due to staff and the time frame and method by which Charter School will make the payments.

Prior to final close-out, Charter School shall complete all actions required by applicable law, including but not limited to the following:

- a. File all final federal, state, and local employer payroll tax returns and issue final W-2s and Form 1099s by the statutory deadlines.
- b. Make final federal tax payments (employee taxes, etc.)
- c. Complete and submit all required federal and state filings and notices to the State of California, the Internal Revenue Service, and the Department of the Treasury, including but not limited to final tax returns and forms (e.g., Form 990 and related Schedules).

This Element 15 shall survive the revocation, expiration, termination, cancellation of this Charter, or any other act or event that would end Charter School's authorization to operate as a charter school or cause Charter School to cease operation. Charter School agrees that, due to the nature of the property and activities that are the subject of this Charter, the District and public shall suffer irreparable harm should Charter School breach any obligation under this Element 15. The District therefore reserves the right to seek equitable relief to enforce any right arising under this Element 15 or any provision of this Element 15 or to prevent or cure any breach of any obligation

undertaken, without in any way prejudicing any other legal remedy available to the District. Such legal relief shall include, without limitation, the seeking of a temporary or permanent injunction, restraining order, or order for specific performance, and may be sought in any appropriate court.

Additional Provisions

FACILITIES

Charter School shall comply with all geographic and site limitations and related requirements set forth in Education Code sections 47605.1, 47602(a), and 47605(a).

District-Owned Facilities

If Charter School is using District facilities as of the date of the submission of this charter petition or takes occupancy of District facilities prior to the approval of this charter petition, Charter School shall execute an agreement provided by the District for the use of the District facilities as a condition of the approval of the charter petition. If at any time after the approval of this charter petition Charter School will occupy and use any District facilities, Charter School shall execute an agreement provided by the District for the use of the District facilities prior to occupancy and commencing use. Charter School shall implement and otherwise comply with the terms of any and all applicable facilities use agreements between Charter School and the District.

The circumstances of Charter School's occupancy of District facilities may change over time such as, but not limited to, enrollment, programs, and the conditions of facilities, and the District has a vested interest in having an agreement that is appropriate for the situation.

For a Sole Occupant Agreement or any other use agreement that is not a Proposition 39 Single Year Co-location Use Agreement or a lease issued through the Notice of Intent and bid process, the term may be co-terminous with the approved Charter, as permitted by law. Charter School and the District shall negotiate any modifications of the agreement with the goal of such amendment or new agreement being considered by the LAUSD Board of Education with the renewal of the charter petition. If Charter School and the District cannot execute an agreement in time for such to be considered by the Board of Education with the renewal of the charter petition, the approval of the renewal of the charter petition shall be conditioned upon Charter School and the District executing an amendment to the existing use agreement or a new agreement no later than May 1st or within nine (9) months of the date of the Board of Education's approval of the renewal of the charter petition. During such time period Charter School shall be permitted to remain in occupancy of the District facilities under the terms and conditions of the immediately preceding, executed use agreement; provided, that if Charter School and the District cannot agree upon and execute an amendment or new use agreement by said deadline, Charter School shall vacate the District facilities on or before June 30th of said school year.

Charter School acknowledges and agrees that occupancy and use of District facilities shall be in compliance with applicable laws and District policies for the operation and maintenance of District facilities and furnishings and equipment. Charter School shall comply with all District health, safety, and emergency procedures and requirements and shall be subject to inspection by the District's Facilities Services Division, OEHS, and other District offices in the same manner as

other LAUSD campuses. All District facilities (i.e., schools) will remain subject to those laws applicable to public schools.

In the event of an emergency, all District facilities (i.e., schools) are available for use by the American Red Cross and public agencies as emergency locations, which may disrupt or prevent Charter School from conducting its educational programs. If Charter School will share the use of District facilities with other District user groups, Charter School agrees that it will participate in and observe all District safety policies (e.g., emergency chain of information and participation in safety drills).

The use agreements provided by the District for District facilities shall contain terms and conditions addressing issues such as, but not limited to, the following:

- Use: Charter School will be restricted to using the District facilities for the operation of a public school providing educational instruction to public school students consistent with the terms of the Charter and incidental related uses. Separate and apart from its right as authorizer to observe and inspect any part of the charter school at any time pursuant to Education Code 47607(a)(1), the District shall have and reserves the right to inspect District facilities upon reasonable notice to Charter School.
- Furnishings and Equipment: The District shall retain ownership of any furnishings and equipment, including technology, (“F&E”) that it provides to Charter School for use. Charter School, at its sole cost and expense, shall provide maintenance and other services for the good and safe operation of the F&E.
- Leasing; Licensing: Use of the District facilities by any person or entity other than Charter School shall be administered by the District. The parties may agree to an alternative arrangement in the use agreement.
- Programs, Services, and Activities Outside Instructional Program; Third Party Vendors:
 - (i) Any program, service, or activity provided outside the instructional program shall be subject to the terms and provisions of the use agreement, and, additionally, may require a license, permit, or additional agreement issued by the District. The term “instructional program” is defined, per Education Code section 47612 and 5 CCR section 11960, as those required educational activities that generate funding based on “average daily attendance” and includes those extracurricular programs, services, and/or activities that students are required to participate in and do not require the payment of any consideration or fee.
 - (ii) Any program, service, or activity requiring the payment of any consideration or fee or provided by a third party vendor (defined as any person or entity other than Charter School), whether paid or volunteer and regardless of whether such may be within the instructional program, shall be subject to the terms and provisions of the use agreement and such third party vendor shall be required to obtain a license, permit, or additional agreement from the District.

- Minimum Payments or Charges to be Paid to District Arising from the Facilities:
 - (i) Pro Rata Share: The District shall collect, and Charter School shall pay a Pro Rata Share for facilities costs as provided in the Charter Schools Act of 1992 and its regulations. The parties may agree to an alternative arrangement regarding facilities costs in the use agreement; and
 - (ii) Taxes; Assessments: Generally, Charter School shall pay any assessment or fee imposed upon or levied on the LAUSD facilities that it is occupying or Charter School's legal or equitable interest created by the use agreement.
- Maintenance & Operations Services: In the event the District agrees to allow Charter School to perform any of the operation and maintenance services, the District shall have the right to inspect the District facilities, and the costs incurred in such inspection shall be paid by Charter School.
 - (i) Co-Location: If Charter School is co-locating or sharing the District facilities with another user, the District shall provide the operations and maintenance services for the District facilities and Charter School shall pay the Pro Rata Share. The parties may agree to an alternative arrangement regarding performance of the operations and maintenance services and payment for such in the use agreement.
 - (ii) Sole Occupant: If Charter School is a sole occupant of District facilities, the District shall allow Charter School, at its sole cost and expense, to provide some operations and maintenance services for the District facilities in accordance with applicable laws and LAUSD's policies on operations and maintenance services for facilities and F&E. NOTWITHSTANDING THE FOREGOING, the District shall provide all services for regulatory inspections which as the owner of the real property it is required to submit, and deferred maintenance, and Charter School shall pay LAUSD for the cost and expense of providing those services. The parties may agree to an alternative arrangement regarding performance of the operations and maintenance services and payment for such services in the use agreement.
- Real Property Insurance: Prior to occupancy, Charter School shall satisfy requirements to participate in LAUSD's property insurance or, if Charter School is the sole occupant of LAUSD facilities, obtain and maintain separate property insurance for the LAUSD facilities. Charter School shall **not** have the option of obtaining and maintaining separate property insurance for the LAUSD facility IF Charter School is co-locating or sharing the LAUSD facility with another user.

Non-District-Owned Facilities

Occupancy and Use of the Site: Prior to occupancy or use of any school site or facility, Charter School shall provide the CSD with a current Certificate of Occupancy or equivalent document issued by the applicable permitting agency that allows Charter School to use and occupy the site as a charter school. Charter School shall not exceed the operating capacity of the site and shall operate within any limitations or requirements provided by the Certificate of Occupancy and any applicable permit. Charter School may not open or operate without providing a copy of an

appropriate Certificate of Occupancy to the CSD. If Charter School intends to move or expand to another facility during the term of this Charter, Charter School shall adhere to any and all District policies and procedures regarding charter material revision and non-material amendment. Prior to occupancy or use of any such additional or changed school site, Charter School shall provide an appropriate Certificate of Occupancy to the CSD for such facility. Notwithstanding any language to the contrary in this Charter, the interpretation, application, and enforcement of this provision are not subject to the Dispute Resolution Process outlined in Element 14.

Facility Compliance: Prior to occupancy or use of any non-District-owned school site and/or facility, Charter School shall ensure that the site and/or facility complies with all applicable building codes, standards and regulations adopted by the city and/or county agencies responsible for building and safety standards for the city in which Charter School is to be located, federal and state accessibility requirements (including the Americans with Disabilities Act (ADA) and Section 504), and all other applicable fire, health, and structural safety and access requirements. This requirement shall also apply to the construction, reconstruction, alteration of or addition to the facility. Charter School shall resolve in a timely manner any and all corrective actions, orders to comply, and notices issued by any authorized building and safety agency. Charter School cannot exempt itself from applicable building and zoning codes, ordinances, and ADA/Section 504 requirements. Charter School shall maintain on file readily accessible records that document facilities compliance and shall promptly provide such documentation to the CSD upon request.

Pest Management: Charter School shall comply with the Healthy Schools Act, Education Code section 17608, which details pest management requirements for schools.

Asbestos Management: Charter School shall comply with the asbestos requirement as cited in the Asbestos Hazard Emergency Response Act (AHERA), 40 C.F.R. part 763. AHERA requires that any building leased or acquired that is to be used as a school or administrative building shall maintain an asbestos management plan.

INSURANCE

Insurance Requirements

No coverage shall be provided to Charter School by the District under any of the District's self-insured programs or commercial insurance policies. Charter School shall secure and maintain, at a minimum, insurance as set forth below with insurance companies acceptable to the District [A.M. Best A-, VII or better] or the equivalent provided through a California Joint Powers Authority self-insurance program to protect Charter School from claims which may arise from its operations. Each Charter School location shall meet the below insurance requirements individually.

It shall be Charter School's responsibility, not the District's, to monitor its vendors, contractors, partners, and/or sponsors for compliance with the insurance requirements.

The following insurance policies are required:

1. Commercial General Liability, including Fire Legal Liability, coverage of \$5,000,000 per Occurrence and in the Aggregate. The policy shall be endorsed to name the Los Angeles

Unified School District and its Board of Education as named additional insureds and shall provide specifically that any insurance carried by the District which may be applicable to any claims or loss shall be deemed excess and Charter School's insurance shall be primary despite any conflicting provisions in Charter School's policy. Coverage shall be maintained with no Self-Insured Retention above \$15,000 without the prior written approval of the Division of Risk Management and Insurance Services for the LAUSD.

2. Workers' Compensation Insurance in accordance with provisions of the California Labor Code adequate to protect Charter School from claims that may arise from its operations pursuant to the Workers' Compensation Act (Statutory Coverage). The Workers' Compensation Insurance coverage must also include Employers Liability coverage with limits of \$1,000,000/\$1,000,000/\$1,000,000.
3. Commercial Auto Liability, including Owned, Leased, Hired, and Non-owned, coverage with limits of \$1,000,000 Combined Single Limit per Occurrence if Charter School does not operate a student transportation service. If Charter School provides student transportation services, the required coverage limit is \$5,000,000 Combined Single Limit per Occurrence.
4. Crime Insurance or Fidelity Bond coverage shall be maintained by Charter School to cover all Charter School employees who handle, process or otherwise have responsibility for Charter School funds, supplies, equipment, or other assets. Minimum amount of coverage shall be \$1,000,000 per occurrence/\$1,000,000 aggregate, with deductible that is acceptable to the Los Angeles Unified School District.
5. Cyber Liability insurance coverage with minimum limits of \$500,000 per occurrence and \$500,000 general aggregate.
6. Professional Educators Errors and Omissions liability coverage with minimum limits of \$5,000,000 per occurrence and \$5,000,000 general aggregate.
7. Sexual Molestation and Abuse coverage with minimum limits of \$5,000,000 per occurrence and \$5,000,000 general aggregate. Coverage may be held as a separate policy or included by endorsement in the Commercial General Liability or the Errors and Omissions Policy. Whether this coverage is separately issued or included by endorsement to another policy, such coverage shall be endorsed to name the Los Angeles Unified School District and Its Board of Education as named additional insureds and shall provide specifically that any insurance carried by the District which may be applicable to any claims or loss shall be deemed excess and Charter School's insurance shall be primary despite any conflicting provisions in Charter School's policy.
8. Employment Practices Legal Liability coverage with limits of \$5,000,000 per occurrence and \$5,000,000 general aggregate.
9. Excess/Umbrella Liability insurance with limits of not less than \$10,000,000 is required of all high schools and any other school that participates in competitive interscholastic or intramural sports programs.

Coverages and limits of insurance may be accomplished through individual primary policies or through a combination of primary and excess policies and alternative methods of coverage as approved by the District. Where specifically required above, and with respect to any other coverage for which such endorsements and/or provisions are available, each policy shall be endorsed to name the Los Angeles Unified School District and Its Board of Education as named additional insureds and shall provide specifically that any insurance carried by the District which may be applicable to any claims or loss shall be deemed excess and Charter School's insurance shall be primary despite any conflicting provisions in Charter School's policy.

Evidence of Insurance

Charter School shall furnish to the District's Division of Risk Management and Insurance Services located at 333 S. Beaudry Ave, 28th Floor, Los Angeles CA 90017 at the outset of the Charter agreement and within 30 calendar days of the inception or effective date of any new policies, renewals, or changes, certificates of insurance evidencing such coverage and signed by authorized representatives of the insurance carrier. Certificates shall be endorsed as follows:

“Charter school shall be required to provide LAUSD with 30 days prior written notice by certified mail, return receipt requested, if the insurance afforded by this policy shall be suspended, cancelled, reduced in coverage limits or non-renewed.”

With respect to the coverages for which additional insured status is required as set forth above, the certificate(s) of insurance shall reflect Los Angeles Unified School District's and Its Board of Education's status as named additional insureds thereunder, and shall attach a copy of the endorsement(s) extending such coverage.

Facsimile or reproduced signatures may be acceptable upon review by the Division of Risk Management and Insurance Services. However, the District reserves the right to require certified copies of any required insurance policies.

Should Charter School deem it prudent and/or desirable to have insurance coverage for damage or theft to Charter School, employee or student property, for student accident, or any other type of insurance coverage not listed above, such insurance shall not be provided by the District and its purchase shall be the responsibility of Charter School.

Hold Harmless/Indemnification Provision

To the fullest extent permitted by law, Charter School does hereby agree, at its own expense, to indemnify, defend and hold harmless the LAUSD and the Board of Education and their members, officers, directors, agents, representatives, employees and volunteers from and against any and all claims, damages, losses and expenses including but not limited to attorneys' fees, brought by any person or entity whatsoever, arising out of, or relating to, this Charter agreement. Charter School further agrees to the fullest extent permitted by law, at its own expense, to indemnify, defend, and hold harmless the LAUSD and the Board of Education and their members, officers, directors, agents, representatives, employees and volunteers from and against any and all claims, damages, losses and expenses including but not limited to attorneys' fees, brought by any person or entity whatsoever for claims, damages, losses and expenses arising from or relating to acts or omission

of acts committed by Charter School and/or its officers, directors, employees or volunteers. Moreover, Charter School agrees to indemnify, defend and hold harmless the LAUSD and the Board of Education and their members, officers, directors, agents, representatives, employees and volunteers, for any contractual liability resulting from third party contracts with Charter School's vendors, contractors, partners or sponsors.

FISCAL MATTERS

District Oversight Costs

The District may charge for the actual costs of oversight of Charter School not to exceed 1% of Charter School's revenue, or the District may charge for the actual costs of oversight of Charter School not to exceed 3% if Charter School is able to obtain substantially rent free facilities from the District. Notwithstanding the foregoing, the District may charge the maximum oversight fee allowed under the law as it may change from time to time. The oversight fee provided herein is separate and distinct from the charges arising under charter school facilities use agreements.

Cash Reserves

Charter School acknowledges that the recommended cash reserve is 5% of expenditures, as provided in section 15450, title 5 of the California Code of Regulations.

Third Party Contracts

Charter School shall ensure that all third party contracts, whether oral or written, for supplies, equipment, goods and/or services, for the direct or indirect benefit of, or otherwise related to the operation of, Charter School, require compliance with and otherwise conform to all applicable local, state, and federal policies, regulations, laws, and guidelines, including but not limited to licensing and permit requirements as well as requirements related to protection of health and safety.

Special Education Revenue Adjustment/Payment for Services

In the event that Charter School owes funds to the District for the provision of agreed upon or fee for service or special education services or as a result of the State's adjustment to allocation of special education revenues from Charter School, Charter School authorizes the District to deduct any and all of the in lieu property taxes that Charter School otherwise would be eligible to receive under section 47635 of the Education Code to cover such owed amounts. Charter School further understands and agrees that the District shall make appropriate deductions from the in lieu property tax amounts otherwise owed to Charter School. Should this revenue stream be insufficient in any fiscal year to cover any such costs, Charter School agrees that it will reimburse the District for the additional costs within forty-five (45) business days of being notified of the amounts owed.

Student Body Funds

Charter School shall supervise and manage any and all student body funds in a manner consistent with the provisions of Education Code sections 48930-48938. Charter School shall include and address student body funds in its financial reports, and ensure that such funds are included and addressed in Charter School's annual audit as a stand-alone item.

Audit and Inspection of Records

Charter School agrees to observe and abide by the following terms and conditions as a requirement for receiving and maintaining its charter authorization:

- Charter School is subject to District oversight.
- The District's statutory oversight responsibility continues throughout the life of the Charter and requires that the District, among other things, monitors the fiscal condition of Charter School.
- The District is authorized to revoke this Charter for, among other reasons, the failure of Charter School to meet generally accepted accounting principles or if Charter School engages in fiscal mismanagement.

Accordingly, the District hereby reserves the right, pursuant to its oversight responsibility, to audit Charter School books, records, data, processes and procedures through the District Office of the Inspector General or other means. The audit may include, but is not limited to, the following areas:

- Compliance with terms and conditions prescribed in the Charter agreement,
- Internal controls, both financial and operational in nature,
- The accuracy, recording and/or reporting of Charter School's financial information,
- Charter School's debt structure,
- Governance policies, procedures and history,
- The recording and reporting of attendance data,
- Charter School's enrollment process,
- Compliance with safety plans and procedures, and
- Compliance with applicable grant requirements.

Charter School shall cooperate fully with such audits and shall make available any and all records necessary for the performance of the audit upon 30 days' notice to Charter School. When 30 days' notice may defeat the purpose of the audit, the District may conduct the audit upon 24-hours' notice.

Fiscal Policies and Procedures

Charter School shall establish, maintain, and implement sound fiscal policies and procedures, including but not limited to internal controls governing all financial and business-related activities.

Apportionment Eligibility for Students Over 19 Years of Age

Charter School acknowledges that, in order for a pupil over nineteen (19) years of age to remain eligible for generating charter school apportionment, the pupil shall be continuously enrolled in public school and make satisfactory progress toward award of a high school diploma. (Ed. Code § 47612(b).)

Local Control and Accountability Plan

In accordance with California Education Code sections 47604.33 and 47606.5, Charter School shall include in its annual update a “listing and description of the expenditures for the fiscal year implementing the specific actions included in the charter as a result of the reviews and assessment required by paragraph (1)” of section 47606.5(a). (Ed. Code § 47606.5(b).)